

SOLICITATION/CONTRACT BIDDER/OFFEROR TO COMPLETE BLOCKS 11, 13, 15, 21, 22, & 27.				1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING DO: A1		Page 1					
2. CONTRACT NUMBER			3. AWARD/EFFECTIVE DATE		4. SOLICITATION NUMBER SPRTA1-23-R-0882			5. SOLICITATION TYPE ☐ SEALED BIDS (IFB) ☒ NEGOTIATED (RFP)		6. SOLICITATION ISSUE DATE			
7. ISSUED BY DLA AVIATION AT OKLAHOMA CITY, OK DLR PROCUREMENT OPERATIONS (AO) 3001 STAFF DRIVE TINKER AFB OK 73145-3070 BUYER: Jeremy Bryant/DLA-AOAA jeremy.bryant@us.af.mil Phone: (405) 734- 8104 Fax: (000) 000-0000				CODE SPRTA1		8. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: % FOR ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOSB PROGRAM ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) NO COLLECT CALLS NAICS: 336412 SIZE STANDARD: 1,500							
9. (Agency Use) LATE OFFERS ARE SUBJECT TO LATE PROPOSAL PROVISIONS INCORPORATED HEREIN. ALL OFFERS ARE SUBJECT TO SUCH PROVISIONS, REPRESENTATIONS, CERTIFICATIONS AND SPECIFICATIONS AS ARE ATTACHED OR INCORPORATED BY REFERENCE. SOLICITATION: OFFERS WILL BE RECEIVED AT THE ISSUING OFFICE UNTIL 15-NOV-2023 3:00PM													
10. ITEMS TO BE PURCHASED (Brief Description) ☒ SUPPLIES ☐ SERVICES Aircraft Engine and Engine Parts Manufacturing													
11. IF OFFER IS ACCEPTED BY THE GOVERNMENT WITHIN * ____ CALENDAR DAYS (60 CALENDAR DAYS UNLESS OFFEROR INSERTS A DIFFERENT PERIOD) FROM THE DATE SET FORTH IN BLOCK 9 ABOVE, THE CONTRACTOR AGREES TO HOLD ITS OFFERED PRICES FIRM FOR THE ITEMS SOLICITED HEREIN AND TO ACCEPT ANY RESULTING CONTRACT SUBJECT TO THE TERMS AND CONDITIONS STATED HEREIN. *120						12. ADMINISTERED BY CODE							
13. CONTRACTOR OFFEROR CODE FACILITY CODE						SCD:B							
TELEPHONE NUMBER UNIQUE ENTITY IDENTIFIER						14. PAYMENT WILL BE MADE BY (SEE ESP CLAUSE 252.232-7003.) CODE							
☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER						SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK: 14 EFT:T							
15. PROMPT PAYMENT DISCOUNT						16. AUTHORITY FOR USING OTHER THAN 10 USC 2304 41 USC 253 FULL AND OPEN COMPETITION ☐ (c) () ☐ (c) ()							
17. ITEM NUMBER		18. SCHEDULE OF SUPPLIES/SERVICES				19. QUANTITY		20. UNIT		21. UNIT PRICE		22. AMOUNT	
		FMS REQUIREMENT Subject to the terms and conditions stated herein, the Contractor agrees to hold its offered prices firm for 120 days.											
		SEE LINE ITEM SCHEDULE											
										Total			
23. ACCOUNTING AND APPROPRIATION DATA SEE SCHEDULE										24. TOTAL AWARD AMOUNT (For Government Use Only) \$			
25. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY CONTINUATION SHEETS SUBJECT THE TERMS AND CONDITIONS SPECIFIED HEREIN. ☒										26. AWARD OF CONTRACT: YOUR OFFER ON SOLICITATION NUMBER SHOWN IN BLOCK 4 INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: ☐			
27. SIGNATURE OF OFFEROR/CONTRACTOR						28. UNITED STATES OF AMERICA (Signature of Contracting Officer)							
NAME AND TITLE OF SIGNER (Type or Print)				DATE SIGNED		NAME OF CONTRACTING OFFICER				DATE SIGNED			

NO RESPONSE FOR REASONS CHECKED

	CANNOT COMPLY WITH SPECIFICATIONS			CANNOT MEET DELIVERY REQUIREMENT
	UNABLE TO IDENTIFY THE ITEM(S)			DO NOT REGULARLY MANUFACTURE OR SELL THE TYPE OF ITEMS INVOLVED
	OTHER (Specify)			
	WE DO		WE DO NOT DESIRE TO BE RETAINED ON THE MAILING LIST FOR FUTURE PROCUREMENT OF THE TYPE OF ITEMS INVOLVED	
NAME AND ADDRESS OF FIRM (Include Zip Code)			SIGNATURE	
			TYPE OR PRINT NAME AND TITLE OF SIGNER	

FROM:

**AFFIX
STAMP
HERE**

TO:

ATTN: Jeremy Bryant/DLA-AOAA
DLA AVIATION AT OKLAHOMA CITY, OK
DLR PROCUREMENT OPERATIONS (AO)
3001 STAFF DRIVE
TINKER AFB OK 73145-3070

SOLICITATION NUMBER SPRTA123R0882

DATE AND LOCAL TIME 15 NOV 2023 3:00 PM

**PART I - THE SCHEDULE
SECTION B
SUPPLIES OR SERVICES AND PRICES/COSTS**

It is anticipated that pricing of this action will be based on adequate price competition; therefore, offerors would not be required to provide additional information necessary to determine price reasonableness. However, if after receipt of proposals it is determined that adequate price competition does not exist; cost or pricing data shall be required IAW 52.215-20 in Section L of this solicitation. The offeror shall provide "cost or pricing data" within 14 calendar days after receipt of the Government's request.

INFORMATIONAL CLIN

Critical Safety Item

Item No.

0001

Firm Fixed Price

<u>Quantity</u>	<u>U/I</u>	<u>Unit Price</u>	<u>Amount</u>
	EA		

<u>CLIN</u>	<u>ACRN</u>	<u>ACRN Total</u>
0001	AA	

NSN: 2840-01-387-2657 NZ

DUCT,FAN,AIRCRAFT G

Provides bypass air for cooling engine.

Titanium (TA)

Manufacturer

Part Number

23163

4084856

52661

4084856

Associated Document(s)

Line Item(s)

F3YTBK3165A001

FD20302200882

0001

Priority: E

Limitations of Liability: High Value Item

Inspection: Origin

Acceptance: Origin

Inspection/Acceptance Report: Receiving Report Required

Quality Assurance: Higher Level Contract Quality Requirements

The Contractor shall comply with the standard(s) listed below. (if more than one, check the appropriate standard.)

<u>Title</u>	<u>Number</u>	<u>Date</u>	<u>Tailoring</u>
ISO	9001-2008	2008	

Foreign Military Sales :FMS Case:

Buy American Act/Balance of Payments Program

IUID Required: Yes

Class I ODS Substance

None

Application/Use

N/A

Quantity

N/A

NEW MANUFACTURED MATERIAL (IAW CLIN 0001)

Critical Safety Item

Item No.
0001AA

Firm Fixed Price

<u>Quantity</u>	<u>U/I</u>	<u>Unit Price</u>	<u>Amount</u>
2	EA		

CLIN	ACRN	ACRN Total
0001AA	AA	

NSN: 2840-01-387-2657 NZ

DUCT,FAN,AIRCRAFT G

Associated Document(s) **Line Item(s)**

F3YTBK3165A001

FD20302200882 0001

Priority: E

Limitations of Liability: High Value Item

Inspection: Origin

Acceptance: Origin

Inspection/Acceptance Report: Receiving Report Required

Quality Assurance: Higher Level Contract Quality Requirements

The Contractor shall comply with the standard(s) listed below. (if more than one, check the appropriate standard.)

Title	Number	Date	Tailoring
ISO	9001-2008	2008	

Foreign Military Sales :FMS Case:PT-D-RBQ

Buy American Act/Balance of Payments Program

☐ **Transportation From Continental United States CONUS (CONUS) Sources**

TYPE / SHIP TO CODE F.O.B.

* DPT006

ORIGIN

Type / Ship To

PACRN

Mark For

* DPT006

PAC

DPTP00

Type / Ship To

Quantity (U/I)

On or Before

Req No / Pri

**Required
Delivery**

* DPT006

2 EA

20 NOV 2023

DPTP5403160002 / PRI: 3

**Proposed
Delivery**

* DPT006

2 EA

TAC: D586

NEW MANUFACTURED MATERIAL (IAW CLIN 0001)

Critical Safety Item

Item No.
0001AB

Firm Fixed Price

<u>Quantity</u>	<u>U/I</u>	<u>Unit Price</u>	<u>Amount</u>
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NEW MANUFACTURED MATERIAL (IAW CLIN 0001)

Critical Safety Item

2 EA

CLIN	ACRN	ACRN Total
0001AB	AB	
NSN: 2840-01-387-2657 NZ		
DUCT,FAN,AIRCRAFT G		
Associated Document(s)	Line Item(s)	
F3YTBK3165A001		
FD20302200882	0002	
Priority: E		

Limitations of Liability: High Value Item

Inspection: Origin

Acceptance: Origin

Inspection/Acceptance Report: Receiving Report Required

Quality Assurance: Higher Level Contract Quality Requirements

The Contractor shall comply with the standard(s) listed below. (if more than one, check the appropriate standard.)

Title	Number	Date	Tailoring
ISO	9001-2008	2008	

Foreign Military Sales :FMS Case:RO-D-QAL
Buy American Act/Balance of Payments Program

☐ **Transportation From Continental United States CONUS (CONUS) Sources**

TYPE / SHIP TO CODE

F.O.B.

* DROE00

ORIGIN

Type / Ship To

PACRN

Mark For

* DROE00

PAC

DRO00X

Type / Ship To

Quantity (U/I)

On or Before

Req No / Pri

**Required
Delivery**

* DROE00

2 EA

20 NOV 2023

DROE7403097408 / PRI: 3

**Proposed
Delivery**

* DROE00

2 EA

TAC: DFMS

NEW MANUFACTURED MATERIAL (IAW CLIN 0001)

Critical Safety Item

Item No.

0001AC

Firm Fixed Price

<u>Quantity</u>	<u>U/I</u>	<u>Unit Price</u>
2	EA	

Amount

CLIN	ACRN	ACRN Total
0001AC	AC	
NSN: 2840-01-387-2657 NZ		

NEW MANUFACTURED MATERIAL (IAW CLIN 0001)

Critical Safety Item

DUCT,FAN,AIRCRAFT G

Associated Document(s)

Line Item(s)

F3YTBK3165A001

FD20302200882

0005

Priority: E

Limitations of Liability: High Value Item

Inspection: Origin

Acceptance: Origin

Inspection/Acceptance Report: Receiving Report Required

Quality Assurance: Higher Level Contract Quality Requirements

The Contractor shall comply with the standard(s) listed below. (if more than one, check the appropriate standard.)

Title	Number	Date	Tailoring
ISO	9001-2008	2008	

Foreign Military Sales :FMS Case:RO-D-QAL

Buy American Act/Balance of Payments Program

☐ **Transportation From Continental United States CONUS (CONUS) Sources**

TYPE / SHIP TO CODE

F.O.B.

* DROE00

ORIGIN

Type / Ship To

PACRN

Mark For

* DROE00

PAC

DRO00X

Type / Ship To

Quantity (U/I)

On or Before

Req No / Pri

**Required
Delivery**

* DROE00

2 EA

20 NOV 2023

DROE7430667402 / PRI: 8

**Proposed
Delivery**

* DROE00

2 EA

TAC: DFMS

SHIP TO (FOREIGN MILITARY SALES)

TYPE/CODE: * DPT006

SUPPLEMENTAL ADDRESS CODE: DA6RBQ

FMS CASE CODE/LOA: PT-D-RBQ/001

MAPAC SHIP TO CODE: DPT006

MAPAC MARK FOR: DPTP00

REQUISITION NUMBER: (See Individual Line Item)

REQUISITION PRIORITY: (See Individual Line Item)

AWARD NUMBER:

TYPE/CODE: * DROE00

SUPPLEMENTAL ADDRESS CODE: DXXQAL

FMS CASE CODE/LOA: RO-D-QAL/003

MAPAC SHIP TO CODE: DROE00

MAPAC MARK FOR:

REQUISITION NUMBER: (See Individual Line Item)

REQUISITION PRIORITY: (See Individual Line Item)
AWARD NUMBER:

TYPE/CODE: * TDBTBD
SUPPLEMENTAL ADDRESS CODE: TDBTBD
FMS CASE CODE/LOA: PT-D-TBD/001
MAPAC SHIP TO CODE: TDBTBD
MAPAC MARK FOR: TDBTBD
REQUISITION NUMBER: (See Individual Line Item)
REQUISITION PRIORITY: (See Individual Line Item)
AWARD NUMBER:

PART I - THE SCHEDULE
SECTION D
PACKAGING AND MARKING

SHIPPING CONTAINER MARKING

See the attached AFMC 158 form(s).

PART I - THE SCHEDULE
SECTION E
INSPECTION AND ACCEPTANCE

52.246-2 INSPECTION OF SUPPLIES--FIXED-PRICE (AUG 1996)
(IAW FAR 46.302)

52.246-11 HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT (DEC 2014)
(IAW FAR 46.311, DFARS 246.202-4(1))

(a) The Contractor shall comply with the higher-level quality standard(s) listed below. *[If more than one standard is listed, the offeror shall indicate its selection by checking the appropriate block.]**

	Title	Number	Date	Tailoring
*See Individual Line Item Schedule				

52.246-16 RESPONSIBILITY FOR SUPPLIES (APR 1984)
(IAW FAR 46.316)

INSPECTION AND ACCEPTANCE (SEP 1999)
(IAW FAR 46.401(b), FAR 46.503)

Government Contract Quality Assurance Inspection and Acceptance will be at (Final): [CONTRACTOR FILL-IN]
Item No(s): See schedule for items with the following code(s) listed below :
Inspection Code and Address:

PART I - THE SCHEDULE
SECTION F
DELIVERIES OR PERFORMANCE

- 52.211-17** **DELIVERY OF EXCESS QUANTITIES** (SEP 1989)
(IAW FAR 11.703(b))
- 52.242-15** **STOP-WORK ORDER** (AUG 1989)
(IAW FAR 42.1305(b)(1))
- 52.242-17** **GOVERNMENT DELAY OF WORK** (APR 1984)
(IAW FAR 42.1305(c))
- 52.247-29** **F.O.B. ORIGIN** (FEB 2006)
(IAW FAR 47.303-1(c))
- 52.247-30** **F.O.B. ORIGIN, CONTRACTOR'S FACILITY** (FEB 2006)
(IAW FAR 47.303-2(c))
- 52.247-65** **F.O.B. ORIGIN, PREPAID FREIGHT--SMALL PACKAGE SHIPMENTS** (JAN 1991)
(IAW FAR 47.303-17(f))
- F.O.B. ORIGIN** (OCT 1993)
(IAW FAR 47.305(b))

Any supply item applicable to this document shall be delivered F.O.B. at:

F.O.B. Address:	[CONTRACTOR FILL-IN]

PART I - THE SCHEDULE
SECTION G
CONTRACT ADMINISTRATION DATA

- 252.232-7006** **WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS** (JAN 2023)
(IAW DFARS 232.7004(b), PGI 232.7004(b)(1), DFARS 212.301(f)(liii))

(a) *Definitions.* As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

(b) *Electronic invoicing.* The WAWF system is the method to electronically process vendor payment requests and receiving reports, as authorized by DFARS 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.acquisition.gov> ; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/> .

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor must use the following information when submitting payment requests and receiving reports in WAWF for this contract/order:

(1) *Document type.* The Contractor shall use the following document type(s).

SEE DFARS CLAUSE 252.232-7003(b)

(2) *Inspection/acceptance location.* The Contractor shall select the following inspection/acceptance location(s) in WAWF, as specified by the contracting officer.

SEE SCHEDULE, SECTION B

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	SEE FRONT PAGE OF SOLICITATION
Issue By DoDAAC	SEE FRONT PAGE OF SOLICITATION
Admin DoDAAC	SEE FRONT PAGE OF SOLICITATION
Inspect By DoDAAC	SEE SCHEDULE SECTION B
Ship To Code	SEE SCHEDULE SECTION B
Ship From Code	SEE SCHEDULE SECTION B
Mark For Code	SEE SCHEDULE SECTION B
Service Approver (DoDAAC)	N/A
Service Acceptor (DoDAAC)	N/A
Accept at Other DoDAAC	SEE SCHEDULE SECTION E
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	CONTACT LOCAL DCMA OFFICE
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information or “See schedule” if multiple ship to/acceptance locations apply, or “Not applicable.”)

(4) *Payment request and supporting documentation.* The Contractor shall ensure a payment request includes appropriate contract line item and subline item descriptions of the work performed or supplies delivered, unit price/cost per unit, fee (if applicable), and all relevant back-up documentation, as defined in DFARS Appendix F, (e.g. timesheets) in support of each payment request.

(5) *WAWF email notifications.* The Contractor shall enter the e-mail address identified below in the “Send Additional Email Notifications” field of WAWF once a document is submitted in the system.

SEE FRONT PAGE OF SOLICITATION

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity’s WAWF point of contact.

CONTACT LOCAL DCMA OFFICE

(2) For technical WAWF help, contact the WAWF helpdesk at 866-618-5988.

(The above Clause/Provision has been modified.)

ACCOUNTING AND APPROPRIATION DATA (AUG 1998)

Accounting and Appropriation Chargeable		Amount Chargeable
ACRN	Funds Citation	
AA 9711X8242 .0002 4F X LC 5W CRBQPT 000000 00000 001000 503000 F03000 PSR: F68776 FSR: 090811 DSR: 137542 CIN: F3YTBK3165A0010000AA		\$0.00
AB 9711X8242 .0002 4F X 47 5W CQAHRO 000000 00000 031000 503000 F03000 PSR: 320229 FSR: 008687 DSR: 137561 CIN: F3YTBK3165A0010000AB		\$0.00
AC 9711X8242 .0002 4F X LC 5W CQALRO 000000 00000 003000 503000 F03000 PSR: 947171 FSR: 096793 DSR: 137628 CIN: F3YTBK3165A0010000AC		\$0.00
ACRN TOTAL		\$ 0.00

TRANSPORTATION APPROPRIATION CHARGEABLE

See Attached DD FORM 1653(s).

PART II - CONTRACT CLAUSES **SECTION I** **CONTRACT CLAUSES**

5352.201-9101 OMBUDSMAN (JUN 2023) **(IAW DAFFARS 5301.9103)**

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) The competition Advocate (CA) at each contracting activity/ office (as defined in DLAD 2.101) shall act as the ombudsman and attempt to resolve contractor complaints. DLA Aviation's AOA/ CA ombudsman can be reached at (405) 734-8241, facsimile (405) 734-8129. Complaints which cannot be so resolved shall be forwarded to the HQ through J-72 for resolution

by the DLA competition advocate. Each activity is responsible for developing procedures for executing the duties and responsibilities of its local ombudsman.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(The above Clause/Provision has been modified.)

52.202-1	DEFINITIONS (JUN 2020) (IAW FAR 2.201)
52.203-3	GRATUITIES (APR 1984) (IAW FAR 3.202)
52.203-5	COVENANT AGAINST CONTINGENT FEES (MAY 2014) (IAW FAR 3.404)
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020) (IAW FAR 3.503-2)
52.203-7	ANTI-KICKBACK PROCEDURES (JUN 2020) (IAW FAR 3.502-3)
52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014) (IAW FAR 3.104-9(a))
52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014) (IAW FAR 3.104-9(b))
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020) (IAW FAR 3.808(b))
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017) (IAW FAR 3.909-3 (b))
252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011) (IAW DFARS 203.171-4(a), DFARS 212.301(f)(ii))
252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023) (IAW DFARS 203.570-3)
252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022) (IAW DFARS 203.970)
52.204-4	PRINTED OR COPIED DOUBLE-SIDED ON RECYCLED PAPER (MAY 2011) (IAW FAR 4.303)
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020) (IAW FAR 4.1403(a))
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018) (IAW FAR 4.1105(b))

- 52.204-18** **COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE** (AUG 2020)
(IAW FAR 4.1804(c), FAR 12.301(d))
- 52.204-19** **INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS**
(DEC 2014)
(IAW FAR 4.1202(b))
- 52.204-21** **BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS**
(NOV 2021)
(IAW FAR 4.1903)
- 52.204-23** **PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES
DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED
ENTITIES** (NOV 2021)
(IAW FAR 4.2004)
- 52.204-25** **PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND
VIDEO SURVEILLANCE SERVICES OR EQUIPMENT** (NOV 2021)
(IAW 4.2105(b))
- 52.204-27** **PROHIBITION ON A BYTEDANCE COVERED APPLICATION** (JUN 2023)
(IAW FAR 4.2203)
- 252.204-7003** **CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT** (APR 1992)
(IAW DFARS 204.404-70(b))
- 252.204-7012** **SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT
REPORTING** (JAN 2023)
(IAW DFARS 204.7304(c))
- 252.204-7015** **NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION
SUPPORT** (JAN 2023)
(IAW DFARS 204.7403(b), DFARS 212.301(f)(i)(F))
- 252.204-7018** **PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE
TELECOMMUNICATIONS EQUIPMENT OR SERVICES** (JAN 2023)
(IAW DFARS 204.2105(c))
- 252.204-7020** **NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS** (JAN 2023)
(IAW DFARS 204.7304(e))
- 252.204-7022** **EXPEDITING CONTRACT CLOSEOUT** (MAY 2021)
(IAW DFARS 204.804-70)
- (a) At the conclusion of all applicable closeout requirements of Federal Acquisition Regulation 4.804, the Government and Contractor shall mutually agree on the residual dollar amount remaining on the contract. Both the Government and Contractor agree to waive payment of any residual dollar amount of \$1,000 or less to which either party may be entitled at the time of contract closeout.
- (b) A residual dollar amount includes all money owed to either party at the end of the contract and as a result of the contract, excluding amounts connected in any way with taxation or a violation of law or regulation.
- (c) For purposes of determining residual dollar amounts, offsets (e.g., across multiple contracts or orders) may be considered only to the extent permitted by law.
- 52.209-1** **QUALIFICATION REQUIREMENTS** (FEB 1995)
(IAW FAR 9.206-2)
- (a) *Definition:* "Qualification Requirement," as used in this clause, means a Government requirement for testing or other quality assurance demonstration that must be completed before award.

(b) One or more qualification requirements apply to the supplies or services covered by this contract. For those supplies or services requiring qualification, whether the covered product or service is an end item, the product, manufacturer, or source must have demonstrated that it meets the standards prescribed for qualification before award of this contract. The product, manufacturer, or source must be qualified at the time of award whether or not the name of the product, manufacturer, or source is actually included on a qualified products list, qualified manufacturers list, or qualified bidders list. Offerors should contact the agency activity designated below to obtain all requirements that they or their products or services, or their subcontractors or their products or services, must satisfy to become qualified and to arrange for an opportunity to demonstrate their abilities to meet the standards specified for qualification.

Item No	Agency Name/Address
0001	DLA Aviation at Oklahoma City 3001 Staff Drive Tinker Air Force Base, OK 73145 (405) 855-7112 Jeremy.bryant@us.af.mil

(c) If an offeror, manufacturer, source, product or service covered by a qualification requirement has already met the standards specified, the relevant information noted below should be provided.

Offeror's Name _____

Manufacturer's Name _____

Source's Name _____

Item Name _____

Service Identification _____

Test Number _____ (to the extent known)

(d) Even though a product or service subject to a qualification requirement is not itself an end item under this contract, the product, manufacturer, or source must nevertheless be qualified at the time of award of this contract. This is necessary whether the Contractor or a subcontractor will ultimately provide the product or service in question. If, after award, the Contracting Officer discovers that an applicable qualification requirement was not in fact met at the time of award, the Contracting Officer may either terminate this contract for default or allow performance to continue if adequate consideration is offered and the action is determined to be otherwise in the Government's best interests.

(e) If an offeror, manufacturer, source, product, or service has met the qualification requirement but is not yet on a qualified products list, qualified manufacturers list, or qualified bidders list, the offeror must submit evidence of qualification prior to award of this contract. Unless determined to be in the Government's interest, award of this contract shall not be delayed to permit an offeror to submit evidence of qualification.

(f) Any change in location or ownership of the plant where a previously qualified product or service was manufactured or performed requires reevaluation of the qualification. Similarly, any change in location or ownership of a previously qualified manufacturer or source requires reevaluation of the qualification. The reevaluation must be accomplished before the date of award.

52.209-6

PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT
(NOV 2021)
(IAW FAR 9.409)

52.209-9

UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)
(IAW FAR 9.104-7(c))

52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS
(NOV 2015)
(IAW FAR 9.108-5(b))

252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM
(MAY 2019)
(IAW DFARS 209.409)

252.209-7010 CRITICAL SAFETY ITEMS (AUG 2011)
(IAW DFARS 209.270-5)

(b) *Identification of critical safety items.* One or more of the items being procured under this contract is an aviation or ship critical safety item. The following items have been designated aviation critical safety items or ship critical safety items by the designated design control activity:

Line Item	Description
0001	0001

52.211-5 MATERIAL REQUIREMENTS (AUG 2000)
(IAW FAR 11.304)

52.211-15 DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS (APR 2008)
(IAW FAR 11.604(b))

This is a rated order certified for national defense, emergency preparedness, and energy program use, and the Contractor shall follow all the requirements of the Defense Priorities and Allocations System regulation (15 CFR 700).

252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)
(IAW DFARS 211.274-6(a)(1), DFARS 212.301(f)(xii))

(a) *Definitions.* As used in this clause—

“DoD recognized unique identification equivalent” means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

“Unique item identifier type” means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government’s unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
	See Schedule as Applicable

(ii) Items for which the Government’s unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or	Item Description
----------------------------	------------------

Exhibit Line Item Number	
*Items less than \$5000, which require UID, will be specifically identified in the schedule.	See Schedule as Applicable

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number _____ (or See Schedule as Applicable).

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number _____ (or See Schedule as Applicable).

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods—

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number _____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

52.215-2 AUDIT AND RECORDS--NEGOTIATION (JUN 2020)
(IAW FAR 15.209(b)(1))

52.215-8 ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT (OCT 1997)
(IAW FAR 15.209(h))

52.215-14 INTEGRITY OF UNIT PRICES (NOV 2021)
(IAW FAR 15.408(f)(1))

52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)
(IAW FAR 19.1309(b))

(b) *Waiver of evaluation preference.*

___ Offeror elects to waive the evaluation preference.

52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION 2023-O0002)
(DEC 2022)
(IAW Deviation 2023-O0002, Revision 1)

52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (OCT 2022)
(IAW FAR 19.708(b))

52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN - ALTERNATE III (JUN 2020)
(IAW FAR 19.708(b)(1))

52.219-16 LIQUIDATED DAMAGES--SUBCONTRACTING PLAN (SEP 2021)
(IAW FAR 19.708(b)(2))

52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION (OCT 2022)
(IAW FAR 19.309(c))

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under NAICS Code _____ assigned to contract number _____.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]*
The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]*
The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) and through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]*
The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]*
The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]*
The Contractor represents that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture.

[The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.]

Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title.]

252.219-7003 **SMALL BUSINESS SUBCONTRACTING PLAN (DoD CONTRACTS)** (DEC 2019)
(IAW DFARS 219.708(b)(1)(A), DFARS 219.708(b)(1)(A)(1))

252.219-7003 **SMALL BUSINESS SUBCONTRACTING PLAN (DoD CONTRACTS)--ALTERNATE I**
(DEC 2019)
(IAW DFARS 219.708(b)(1)(A)(2), DFARS 219.708(b)(1)(A)(1))

252.219-7004 **SMALL BUSINESS SUBCONTRACTING PLAN (TEST PROGRAM)** (DEC 2022)
(IAW DFARS 219.708(b)(1)(B))

52.222-19 **CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES** (DEC 2022)
(IAW FAR 22.1505(b))

52.222-21 PROHIBITION OF SEGREGATED FACILITIES (APR 2015)
(IAW FAR 22.810(a)(1))

52.222-26 EQUAL OPPORTUNITY (SEP 2016)
(IAW FAR 22.810(e))

52.222-29 NOTIFICATION OF VISA DENIAL (APR 2015)
(IAW FAR 22.810(g))

52.222-35 EQUAL OPPORTUNITY FOR VETERANS (JUN 2020)
(IAW FAR 22.1310(a)(1), DFARS 222.1310(a)(1))

(a) *Definitions.* As used in this clause--

“Active duty wartime or campaign badge veteran,” “Armed Forces service medal veteran,” “disabled veteran,” “protected veteran,” “qualified disabled veteran,” and “recently separated veteran” have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) *Equal opportunity clause.* The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) *Subcontracts.* The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate of identify properly the parties and their undertakings.

52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)
(IAW FAR 22.1408(a))

(a) *Equal opportunity clause.* The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60.741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) *Subcontracts.* The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

52.222-37 EMPLOYMENT REPORTS ON VETERANS (JUN 2020)
(IAW FAR 22.1310(b))

52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)
(IAW FAR 22.1605)

52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021)
(IAW FAR 22.1705(a)(1))

52.223-6 DRUG-FREE WORKPLACE (MAY 2001)
(IAW FAR 23.505)

52.223-11 OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (JUN 2016)
(IAW FAR 23.804(a)(1))

(a) *Definitions.* As used in this clause--

“Global warming potential” means how much a given mass of a chemical contributes to global warming over a given time

period compared to the same mass of carbon dioxide. Carbon Dioxide's global warming potential is defined as 1.0.

"High global warming potential hydrofluorocarbons" means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at (<http://www.epa.gov/snap/>).

"Hydrofluorocarbons" means compounds that only contain hydrogen, fluorine, and carbon.

"Ozone-depleting substance" means any substance the Environmental Protection Agency designates in 40 CFR Part 82 as--

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II including, but not limited to hydrochlorofluorocarbons.

(b) The Contractor shall label products which contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR Part 82, Subpart E, as follows:

Warning

Contains (or manufactured with, if applicable) * _____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) *Reporting.* For equipment and appliances that normally each contain 50 or more pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons, the Contractor shall—

(1) Track on an annual basis, between October 1 and September 30, the amount in pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons contained in the equipment and appliances delivered to the Government under this contract by—

- (i) Type of hydrofluorocarbon (e.g., HFC-134a, HFC-125, R-410A, R-404A, etc.);
- (ii) Contract number; and
- (iii) Equipment/appliance;

(2) Report that information to the Contracting Officer for FY16 and to www.sam.gov for FY17 and after00

- (i) Annually by November 30 of each year during contract performance; and
- (ii) At the end of contract performance.

(d) The Contractor shall refer to EPA's SNAP program (available at <http://www.epa.gov/snap>) to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at <http://www.epa.gov/snap>.

52.223-18 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (JUN 2020)
(IAW FAR 23.1105)

52.223-20 AEROSOLS (JUN 2016)
(IAW FAR 23.804(a)(3))

52.223-21 FOAMS (JUN 2016)
(IAW FAR 23.804(a)(4))

252.223-7008 PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)
(IAW DFARS 223.7306, DFARS 212.301(f)(xxi))

5352.223-9000 ELIMINATION OF USE OF CLASS I OZONE DEPLETING SUBSTANCES (ODS)
(JUN 2023)
(IAW DAFFARS 5323.804-90)

(a) Contractors shall not:

(1) Provide any service or product with any specification, standard, drawing, or other document that requires the use of a Class I ODS in the test, operation, or maintenance of any system, subsystem, item, component, or process; or

(2) Provide any specification, standard, drawing, or other document that establishes a test, operation, or maintenance requirement that can only be met by use of a Class I ODS as part of this contract/order.

[Note: This prohibition does not apply to manufacturing.]

(b) For the purposes of Department of the Air Force policy, the following products that are pure (i.e., they meet the relevant product specification identified in AFI 32-7086) are Class I ODSs:

(1) Halons: 1011, 1202, 1211, 1301, and 2402;

(2) Chlorofluorocarbons (CFCs): CFC-11, CFC-12, CFC-13, CFC-111, CFC-112, CFC-113, CFC-114, CFC-115, CFC-211, CFC-212, CFC-213, CFC-214, CFC-215, CFC-216, and CFC-217, and the blends R-500, R-501, R-502, and R-503; and

(3) Carbon Tetrachloride, Methyl Chloroform, and Methyl Bromide.

[NOTE: Material that uses one or more of these Class I ODSs as minor constituents do not meet the Department of the Air Force definition of a Class I ODS.]

52.224-3 **PRIVACY TRAINING** (JAN 2017)
(IAW FAR 24.302(a))

52.225-13 **RESTRICTIONS ON CERTAIN FOREIGN PURCHASES** (FEB 2021)
(IAW FAR 25.1103(a))

252.225-7001 **BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM--BASIC** (JAN 2023)
(IAW DFARS 225.1101(2)(i) and (2)(ii))

252.225-7002 **QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS** (MAR 2022)
(IAW DFARS 225.1101(3))

252.225-7012 **PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES** (APR 2022)
(IAW DFARS 225.7002-3(a))

252.225-7027 **RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES**
(APR 2003)
(IAW DFARS 225.7307(a))

(b) (1) For sales to the Government(s) of Australia, Taiwan, Egypt, Greece, Israel, Japan, Jordan, Republic of Korea, Kuwait, Pakistan, Philippines, Saudi Arabia, Turkey, Thailand, or Venezuela (Air Force), contingent fees in any amount.

252.225-7028 **EXCLUSIONARY POLICIES AND PRACTICES OF FOREIGN GOVERNMENTS**
(APR 2003)
(IAW DFARS 225.7300, DFARS 225.7307(b))

252.225-7048 **EXPORT-CONTROLLED ITEMS** (JUN 2013)
(IAW DFARS 225.7901-4)

252.225-7052 **RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN** (JAN 2023)
(IAW DFARS 225.7018-5)

252.225-7061 **RESTRICTION ON THE ACQUISITION OF PERSONAL PROTECTIVE EQUIPMENT AND CERTAIN OTHER ITEMS FROM NON-ALLIED FOREIGN NATIONS** (JAN 2023)
(IAW DFARS 225.7023-4)

252.225-7972 **PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2020-O0015)** (MAY 2020)
(IAW Deviation 2020-O0015)

Deviation 2020-O0015

(a) *Prohibition.* In accordance with section 848 of the National Defense Authorization Act for Fiscal Year 2020, the Contractor shall not provide or use in the performance of this contract—

(1) An unmanned aircraft system (UAS), or any related services or equipment, that—

(i) Is manufactured in the People's Republic of China or by an entity domiciled in the People's Republic of China;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in the People's Republic of China or by an entity domiciled in the People's Republic of China;

(iii) Uses a ground control system or operating software developed in the People's Republic of China or by an entity domiciled in the People's Republic of China; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, the People's Republic of China; or

(2) A system for the detection or identification of a UAS, or any related services or equipment, that is manufactured—

(i) In the People's Republic of China; or

(ii) By an entity domiciled in the People's Republic of China.

(b) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (b), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023) (IAW DFARS 226.104)
52.227-1	AUTHORIZATION AND CONSENT (JUN 2020) (IAW FAR 27.201-2(a)(1))
52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020) (IAW FAR 27.201-2(b))
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (FEB 2013) (IAW FAR 29.401-3(a))
52.229-12	TAX ON CERTAIN FOREIGN PROCUREMENTS (FEB 2021) (IAW 29.402-3(b))
252.229-7014	FULL EXEMPTION FROM TWO-PERCENT EXCISE TAX ON CERTAIN FOREIGN PROCUREMENTS. (OCT 2022) (IAW DFARS 229-402(k))
52.232-1	PAYMENTS (APR 1984) (IAW FAR 32.111(a)(1))
52.232-8	DISCOUNTS FOR PROMPT PAYMENT (FEB 2002) (IAW FAR 32.111(b)(1))
52.232-11	EXTRAS (APR 1984) (IAW FAR 32.111(c)(2))
52.232-17	INTEREST (MAY 2014) (IAW FAR 32.611(a), FAR 32.611(b))
52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014) (IAW FAR 32.806(a)(1))

52.232-25 PROMPT PAYMENT (JAN 2017)
(IAW FAR 32.908(c))

(a) Invoice payments—

(5) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor, Government acceptance is deemed to occur constructively on the 7th day (unless otherwise specified in this contract) after the Contractor delivers the supplies or performs the services in accordance with the terms and conditions of the contract, unless there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. If actual acceptance occurs within the constructive acceptance period, the Government will base the determination of an interest penalty on the actual date of acceptance. The constructive acceptance requirement does not, however, compel Government officials to accept supplies or services, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD
MANAGEMENT (OCT 2018)
(IAW FAR 32.1110(a)(1))

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)
(IAW FAR 32.706-3)

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS
SUBCONTRACTORS (MAR 2023)
(IAW FAR 32.009-2)

252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS
(DEC 2018)
(IAW DFARS 232.7004(a))

(a) Definitions. As used in this clause—

“Contract financing payment” means an authorized Government disbursement of monies to a contractor prior to acceptance of supplies or services by the Government.

(1) Contract financing payments include—

- (i) Advance payments;
- (ii) Performance-based payments;
- (iii) Commercial advance and interim payments;
- (iv) Progress payments based on cost under the clause at Federal Acquisition Regulation (FAR) 52.232-16, Progress Payments;
- (v) Progress payments based on a percentage or stage of completion (see FAR 32.102(e)), except those made under the clause at FAR 52.232-5, Payments Under Fixed-Price Construction Contracts, or the clause at FAR 52.232-10, Payments Under Fixed-Price Architect-Engineer Contracts; and
- (vi) Interim payments under a cost reimbursement contract, except for a cost reimbursement contract for services when Alternate I of the clause at FAR 52.232-25, Prompt Payment, is used.

(2) Contract financing payments do not include—

- (i) Invoice payments;
- (ii) Payments for partial deliveries; or
- (iii) Lease and rental payments.

“Electronic form” means any automated system that transmits information electronically from the initiating system to affected systems.

“Invoice payment” means a Government disbursement of monies to a contractor under a contract or other authorization for supplies or services accepted by the Government.

(1) Invoice payments include—

- (i) Payments for partial deliveries that have been accepted by the Government;
- (ii) Final cost or fee payments where amounts owed have been settled between the Government and the contractor;

(iii) For purposes of subpart 32.9 only, all payments made under the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, and the clause at 52.232-10, Payments Under Fixed-Price Architect-Engineer Contracts; and
(iv) Interim payments under a cost-reimbursement contract for services when Alternate I of the clause at 52.232-25, Prompt Payment, is used.

(2) Invoice payments do not include contract financing payments.

“Payment request” means any request for contract financing payment or invoice payment submitted by the Contractor under this contract or task or delivery order.

“Receiving report” means the data prepared in the manner and to the extent required by Appendix F, Material Inspection and Receiving Report, of the Defense Federal Acquisition Regulation Supplement.

(b) Except as provided in paragraph (d) of this clause, the Contractor shall submit payment requests and receiving reports in electronic form using Wide Area WorkFlow (WAWF). The Contractor shall prepare and furnish to the Government a receiving report at the time of each delivery of supplies or services under this contract or task or delivery order.

(c) Submit payment requests and receiving reports to WAWF in one of the following electronic formats:

- (1) Electronic Data Interchange.
- (2) Secure File Transfer Protocol.
- (3) Direct input through the WAWF website.

(d) The Contractor may submit a payment request and receiving report using methods other than WAWF only when—

- (1) The Contractor has requested permission in writing to do so, and the Contracting Officer has provided instructions for a temporary alternative method of submission of payment requests and receiving reports in the contract administration data section of this contract or task or delivery order;
- (2) DoD makes payment for commercial transportation services provided under a Government rate tender or a contract for transportation services using a DoD-approved electronic third party payment system or other exempted vendor payment/invoicing system (e.g., PowerTrack, Transportation Financial Management System, and Cargo and Billing System);
- (3) DoD makes payment on a contract or task or delivery order for rendered health care services using the TRICARE Encounter Data System; or
- (4) The Governmentwide commercial purchase card is used as the method of payment, in which case submission of only the receiving report in WAWF is required.

(e) Information regarding WAWF is available at <https://wawf.eb.mil/>.

(f) In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

252.232-7010	LEVIES ON CONTRACT PAYMENTS (DEC 2006) (IAW DFARS 232.7102)
52.233-1	DISPUTES (MAY 2014) (IAW FAR 33.215)
52.233-3	PROTEST AFTER AWARD (AUG 1996) (IAW FAR 33.106(b))
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004) (IAW FAR 33.215(b))
52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (JAN 2017) (IAW FAR 42.1504)
52.242-13	BANKRUPTCY (JUL 1995) (IAW FAR 42.903)

- 52.243-1 CHANGES--FIXED-PRICE (AUG 1987)**
(IAW FAR 43.205(a)(1))
- 252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991)**
(IAW DFARS 243.205-70)
- 252.243-7002 REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)**
(IAW DFARS 243.205-71)
- 252.243-7999 SECTION 3610 REIMBURSEMENT (DEVIATION 2020-O0021) (AUG 2020)**
(IAW Deviation 2020-O0021, Revision 3)

(a) *Definitions.* As used in this clause—

“Affected contractor” means a contractor that has incurred costs to provide paid leave for its employees or subcontractors to maintain its workforce in a ready state and otherwise meets all the requirements of section 3610 of the Coronavirus Aid, Relief, and Economic Security Act (CARES Act) (Pub. L. 116–136).

(b) *Reduction for credits or loan forgiveness.*

(1) Section 3610 of the CARES Act requires that the maximum reimbursement to affected contractors authorized by section 3610 shall be reduced by the amount of any credits received pursuant to Division G of Public Law 116-127 and any applicable credits a contractor is allowed under the CARES Act. The Contracting Officer will reduce the amount of the funds authorized under section 3610 and provided by modification, commensurate with the amount of any credits or loan forgiveness received.

(2) Should the timing of any other reimbursements be such that the Contractor is unable to provide notification to the contracting officer prior to execution of a contract modification resulting from the Contractor’s section 3610 reimbursement request, the Contractor shall notify the contracting officer, as provided in paragraph (c), and agrees that the Government will modify the contract to reduce the reimbursed amount by the credit or loan forgiveness amount received.

(c) *Notice of receipt of credits or loan forgiveness.*

(1) The Contractor shall notify the Contracting Officer in writing within 30 days of receiving—

12. Loan forgiveness pursuant to—

13. Division G of the Families First Coronavirus Response Act (Pub. L. 116–127); or

(B) The Coronavirus Aid, Relief, and Economic Security Act (CARES Act) (Pub. L. 116–136); and

13. Any other credit allowed by law (including State and local laws that are specifically identifiable with the public health emergency declared on January 31, 2020, for COVID-19).

(2) Include in the notice to the Contracting Officer the amount of any credits or loan forgiveness received along with supporting information necessary to facilitate calculation of the required reductions of reimbursement provided under any contract modification pursuant to section 3610 reimbursement to offset credits or loan forgiveness received under paragraph (c)(1).

(d) *Audit.* The Government reserves the right to audit the Contractor’s billed costs reimbursed under section 3610 of the CARES Act to ensure accuracy and compliance with law and any applicable regulations.

(e) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (e), in any subcontract modification that involves the reimbursement of paid leave under section 3610 of the CARES Act to affected subcontractors, including subcontracts for the acquisition of commercial items.

- 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES**
(JUN 2023)
(IAW FAR 44.403)

- 252.244-7000 SUBCONTRACTS FOR COMMERCIAL ITEMS AND COMMERCIAL COMPONENTS (DOD CONTRACTS)** (JAN 2023)
(IAW DFARS 244.403)
- 52.246-24 LIMITATION OF LIABILITY--HIGH-VALUE ITEMS** (FEB 1997)
(IAW FAR 46.805(a)(2))
- 252.246-7003 NOTIFICATION OF POTENTIAL SAFETY ISSUES** (JAN 2023)
(IAW DFARS 246.370(a), DFARS 212.301(f)(xii))
- 52.247-1 COMMERCIAL BILL OF LADING NOTATIONS** (FEB 2006)
(IAW FAR 47.104-4(a), FAR 47.104-4(b))
- 252.247-7023 TRANSPORTATION OF SUPPLIES BY SEA--BASIC** (JAN 2023)
(IAW DFARS 247.574(b))
- 252.247-7028 APPLICATION FOR U.S. GOVERNMENT SHIPPING DOCUMENTATION/INSTRUCTIONS** (JUN 2012)
(IAW DFARS 247.207)
- 52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)**
(APR 2012)
(IAW FAR 49.502(b)(1)(i))
- 52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)** (APR 1984)
(IAW FAR 49.504(a)(1))
- 52.252-2 CLAUSES INCORPORATED BY REFERENCE** (FEB 1998)
(IAW FAR 52.107(b))

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. **Also, the full text of a clause may be accessed electronically at this/these address(es):**

Regulations URLs: (Click on the appropriate regulation.)

<https://acquisition.gov/browse/index/far>

<https://acquisition.gov/dfars>

<https://acquisition.gov/affars>

NOTE: After selecting the appropriate regulation above, at the "Table of Contents" page, conduct a search for the desired regulation reference using your browser's **FIND** function. When located, click on the **regulation reference** (hyperlink).

- 52.253-1 COMPUTER GENERATED FORMS** (JAN 1991)
(IAW FAR 53.111)

PART III - LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS
SECTION J
LIST OF ATTACHMENTS

Form Number	Description/File Name	Date	Number of Pages
DD FORM 1653	Transportation Data	21MAR2023	3
AFMC 158	Packaging Requirements	21MAR2023	1
DD FORM 2169	Special Packaging Instruction	UNDATED	6
IUID	IUID Checklist	UNDATED	1
MQR-PSD-1	Qualification Requirements	29OCT2019	31

PART IV - REPRESENTATIONS AND INSTRUCTIONS
SECTION K
REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS
OF OFFERORS OR RESPONDENTS

52.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS
(SEP 2022)
(IAW DFARS 203.171-4(b))

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (DEC 2022)
(IAW FAR 4.1202(a))

- (a)(1) The North American Industry Classification System (NAICS) code for this acquisition is **336412**.
- (2) The small business size standard is **1,500**.
- (3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees if the acquisition—
- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
 - (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
 - (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.
- (2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:
- ☐ (i) Paragraph (d) applies.
 - ☐ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.
- (c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:
- (i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—
 - (A) The acquisition is to be made under the simplified acquisition procedures in Part 13;
 - (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
 - (C) The solicitation is for utility services for which rates are set by law or regulation.
 - (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
 - (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements—Representation. This provision applies to all solicitations.
 - (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
 - (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
 - (vi) 52.204-26, Covered Telecommunications Equipment or Services—Representation. This provision applies to all solicitations.
 - (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations—Representation.
 - (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
 - (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

- (x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
- (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
- (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.
- (xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA-designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.
- (xviv) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation. This provision applies to solicitations that include the clause at 52.204-7
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) (xii) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$92,319, the provision with its Alternate II applies.
- (C) If the acquisition value is \$92,319 or more but is less than \$100,000, the provision with its Alternate III applies.
- (D) If the acquisition value is \$92,319 or more but is less than \$100,000, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transaction Relating to Iran—Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

- ☒ (i) 52.204-17, Ownership or Control of Offeror.
- ☒ (ii) 52.204-20, Predecessor of Offeror.
- ☒ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

___ **(see note)** (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment -- Certification.). **(Note: If this clause is applicable it will be listed in the appropriate clause section of this document.)**

___ (v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

___ **(see note)** (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only). **(Note: If this clause and it's Alternate I are applicable they will be listed in the appropriate clause section of this document.)**

(vii) 52.227-6, Royalty Information.

___(A) Basic.

___ (B) Alternate I.

___(viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAY 2021)
(IAW DFARS 204.1202)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

___ (i) Paragraph (e) applies.

___ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d) (1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services—Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government--Representation. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services—Representation. Applies to solicitations for the acquisition of commercial satellite services.

- (v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.
- (vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.
- (vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.
- (viii) 252.247-7022, Representation of Extent of Transportation by Sea. Applies to all solicitations except those for direct purchase of ocean transportation services or those with an anticipated value at or below the simplified acquisition threshold.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer; **[Contracting Officer check as appropriate.]**

- ☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.
- ☒ (ii) 252.225-7000, Buy American —Balance of Payments Program Certificate.
- ☐ (iii) 252.225-7020, Trade Agreements Certificate.
- ☐ Use with Alternate I
- ☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.
- ☐ (v) 252.225-7035, Buy American —Free Trade Agreements—Balance of Payments Program Certificate.
- ☐ Use with Alternate I.
- ☐ Use with Alternate II.
- ☐ Use with Alternate III.
- ☐ Use with Alternate IV.
- ☐ Use with Alternate V.
- ☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.
- ☐ (vii) 252.232-7015, Performance-Based Payments—Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.acquisition.gov/>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision No.	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)
(IAW DFARS 204.7304(a))

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES -- REPRESENTATION (DEC 2019)
(IAW 204.2105(a))

(a) Definitions. As used in this provision, covered defense telecommunications equipment or services has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered defense telecommunications equipment or services”.

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

252.204-7017

**PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE
TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION**
(MAY 2021)
(IAW DFARS 204.2105(b))

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204–7016, Covered Defense Telecommunications Equipment or Services—Representation, that it “does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.”

(a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204–7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115–91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at [https:// www.sam.gov](https://www.sam.gov) for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204–7016, Covered Defense Telecommunications Equipment or Services—Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

252.204-7019

NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS
(MAR 2022)
(IAW DFARS 204.7304(d))

(a) *Definitions.*

“Basic Assessment”, “Medium Assessment”, and “High Assessment” have the meaning given in the clause 252.204-7020, NIST SP 800-171 DoD Assessments.

“Covered contractor information system” has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.

(b) *Requirement.* In order to be considered for award, if the Offeror is required to implement NIST SP 800-171, the Offeror shall have a current assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) (see 252.204-7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800-171 DoD Assessments are described in the NIST SP 800-171 DoD Assessment Methodology located at <https://www.acq.osd.mil/asda/dpc/cp/cyber/safeguarding.html#nistSP800171>

(c) *Procedures.*

(1) The Offeror shall verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) for all covered contractor information systems relevant to the offer.

(2) If the Offeror does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to webpmsmh@navy.mil for posting to SPRS in the format identified in paragraph (d) of this provision.

(d) *Summary level scores.* Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) *Basic Assessments.* An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.

(i) The email shall include the following information:

(A) Cybersecurity standard assessed (e.g., NIST SP 800-171 Rev 1).

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract—

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (d)(1)(i) of this section, the Offeror shall use the following format for the report:

System Security Plan	CAGE Codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total Score	Date score of 110 will be achieved
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(2) *Medium and High Assessments.* DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:

- (i) The standard assessed (e.g., NIST SP 800-171 Rev 1).
- (ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).
- (iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.
- (iv) A brief description of the system security plan architecture, if more than one system security plan exists.
- (v) Date and level of the assessment, i.e., medium or high.
- (vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).
- (vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(3) *Accessibility.*

(i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(iii) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

52.207-4

ECONOMIC PURCHASE QUANTITY--SUPPLIES (AUG 1987)
(IAW FAR 7.203)

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

OFFEROR RECOMMENDATIONS

<u>ITEM</u>	<u>QUANTITY</u>	<u>QUOTATION</u>	<u>PRICE TOTAL</u>

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and re-solicit with respect to any individual item in the event quotations received and the Government's requirements indicate that different quantities should be acquired.

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018) (IAW FAR 9.104-7(b))

(a) *Definitions.* As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ **has** ☐ **does not have** current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or

- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)
(IAW FAR 9.104-7(d))

(b) The Offeror represents that—

- (1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
- (2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION (NOV 2021)
(IAW FAR 9.109-5)

THE FOLLOWING IS FILL-IN DATA FOR PROVISION 52.204-8 PARA (c)(2)(iii):

52.222-18 CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS (FEB 2021)

(b) *Listed end products.* The following end product(s) being acquired under this solicitation is (are) included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, identified by their country of origin. There is a reasonable basis to believe that listed end products from the listed countries of origin may have been mined, produced, or manufactured by forced or indentured child labor.

<u>Listed end product</u>	<u>Listed countries of origin</u>
_____	_____
_____	_____
_____	_____

(c) *Certification.* The Government will not make award to an offeror unless the offeror, by checking the appropriate block, certifies to either paragraph (c)(1) or paragraph (c)(2) of this provision.

- ☐ (1) The offeror will not supply any end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in a corresponding country as listed for that end product.
- ☐ (2) The offeror may supply an end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture such end product. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

52.223-22 PUBLIC DISCLOSURE OF GREENHOUSE GAS EMISSIONS AND REDUCTION GOALS--REPRESENTATION (DEC 2016)
(IAW FAR 23.804(b))

(b) Representation. [Offeror is to check applicable blocks in paragraphs (b)(1) and (2).]

- (1) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., make available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(2) The Offeror (itself or through its immediate owner or highest-level owner) ☐ **does**, ☐ **does not** publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly available Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(3) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(c) If the Offeror checked "does" in paragraphs (b)(1) or (b)(2) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported: _____.

52.225-18 PLACE OF MANUFACTURE (AUG 2018)
(IAW FAR 25.1101(f))

(a) *Definitions.* As used in this provision—

"Manufactured end product" means any end product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

- (1) ☐ **In the United States** (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- (2) ☐ **Outside the United States.**

52.229-11 TAXES ON CERTAIN FOREIGN PROCUREMENTS - NOTICE AND REPRESENTATION (JUN 2020)
(IAW FAR 29.402-3(a))

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates “is” in paragraph (d)(1) of this provision, then the Offeror represents that—

I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption
[Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

PART IV - REPRESENTATIONS AND INSTRUCTIONS
SECTION L
INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

52.204-7	SYSTEM FOR AWARD MANAGEMENT (OCT 2018) (IAW FAR 4.1105(a)(1))
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020) (IAW FAR 4.1804(a), FAR 12.301(d))
52.204-22	ALTERNATIVE LINE ITEM PROPOSAL (JAN 2017) (IAW FAR 4.1008)
52.204-24	REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) (IAW FAR 4.2105(a))

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the

provision at 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204–26, or in paragraph (v)(2)(ii) of the provision at 52.212–3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) *Representations.* The Offeror represents that—

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

**52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES -
REPRESENTATION (OCT 2020)
(IAW FAR 4.2105(c))**

(a) *Definitions.* As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) *Representations.*

(1) The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

252.204-7024 NOTICE ON THE USE OF THE SUPPLIER PERFORMANCE RISK SYSTEM
(MAR 2023)
(IAW DFARS 204.7604)

(a) *Definitions.* As used in this provision—

Item risk means the probability that a product, based on intended use, will introduce performance risk resulting in safety issues, mission degradation, or monetary loss.

Price risk means a measure of whether a proposed price for a product or service is consistent with historical prices paid for that item or service.

Supplier risk means the probability that an award may subject the procurement to the risk of unsuccessful performance or to supply chain risk (see Defense Federal Acquisition Regulation Supplement 239.7301).

(b) The Supplier Performance Risk System (SPRS), available at <https://piee.eb.mil/>, will be used in the evaluation of the Quoter or Offeror's performance. SPRS retrieves item, price, quality, delivery, and contractor information on contracts from Government reporting systems in order to develop risk assessments.

(c) The Contracting Officer will consider SPRS risk assessments during the evaluation of quotations or offers received in response to this solicitation as follows:

(1) Item risk will be considered to determine whether the procurement represents a high performance risk to the Government.

(2) Price risk will be considered in determining if a proposed price is consistent with historical prices paid for a product or a service or otherwise creates a risk to the Government.

(3) Supplier risk, including but not limited to quality and delivery, will be considered to assess the risk of unsuccessful performance and supply chain risk.

(d) SPRS risk assessments are generated daily. Quoters or Offerors are able to access their risk assessments by following the access instructions in the SPRS user's guide available at <https://www.sprs.csd.disa.mil/reference.htm>. Quoters and Offerors are granted access to SPRS for their own risk assessment classifications only. SPRS reporting procedures and risk assessment methodology are detailed in the SPRS user's guide. The method to challenge a rating generated by SPRS is also provided in the user's guide. SPRS evaluation criteria are available at https://www.sprs.csd.disa.mil/pdf/SPRS_DataEvaluationCriteria.pdf.

(e) The Contracting Officer may consider any other available and relevant information when evaluating a quotation or an offer.

**52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY
PREPAREDNESS, AND ENERGY PROGRAM USE** (APR 2008)
(IAW FAR 11.604(a))

Note: DX or DO rating will be completed on cover page.

52.215-1 INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION (NOV 2021)
(IAW FAR 15.209(a))

252.215-7008 ONLY ONE OFFER (DEC 2022)
(IAW DFARS 215.408(3))

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to—

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and

reasonable or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 2306a and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

252.215-7013

SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)
(IAW DFARS 215.408(6))

52.216-1

TYPE OF CONTRACT (APR 1984)
(IAW FAR 16.105)

The Government contemplates award of a (see individual line item) contract resulting from this solicitation.

252.225-7973

PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2020-O0015) (MAY 2020)
(IAW DEVIATION 2020-O0015)

(a) *Prohibition.* Section 848 of the National Defense Authorization Act for Fiscal Year 2020 (Pub. L. 116-92) prohibits DoD from using or procuring—

(1) An unmanned aircraft system (UAS), or any related services or equipment, that—

(i) Is manufactured in the People's Republic of China or by an entity domiciled in the People's Republic of China;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in the People's Republic of China or by an entity domiciled in the People's Republic of China;

(iii) Uses a ground control system or operating software developed in the People's Republic of China or by an entity domiciled in the People's Republic of China; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, the People's Republic of China; or

(2) A system for the detection or identification of a UAS, or any related services or equipment, that is manufactured—

(i) In the People's Republic of China; or

(ii) By an entity domiciled in the People's Republic of China.

(b) *Representations*. By submission of its offer, the Offeror represents that it will not provide or use—

(1) A UAS, as described in paragraph (a)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and

(2) A system for the detection or identification of a UAS, as described in paragraph (a)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(End of provision)

52.233-2 SERVICE OF PROTEST (SEP 2006)
(IAW FAR 33.106(a))

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from (See page 1 Issuing Office).

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

52.247-46 SHIPPING POINT(S) USED IN EVALUATION OF F.O.B. ORIGIN OFFERS (APR 1984)
(IAW FAR 47.305-3(b)(4)(ii))

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)
(IAW FAR 52.107(a))

This solicitation incorporated one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The full text of a clause may be accessed electronically at this/these address(es): Regulations URLs: (Click on the appropriate regulation.)

<https://acquisition.gov/browse/index/far>
<https://acquisition.gov/dfars>
<https://acquisition.gov/affars>

NOTE: After selecting the appropriate regulation above, at the "Table of Contents" page conduct a search for the desired regulation reference, using your browser's **FIND** function. When located, click on the **regulation reference** (hyperlink).

SECTION L

**INSTRUCTIONS TO OFFERORS (ITO) AND INSTRUCTIONS FOR PROPOSAL PREPARATION
USING BEST VALUE PROCESS, PERFORMANCE PRICE TRADEOFF (PPT) SOURCE SELECTION PROCEDURES**

General Instructions

Instructions to the Offerors (ITO):

This section of the ITO provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The offeror's proposal must include all data and information requested by the ITO and must be submitted in accordance with these instructions. The offeror shall be compliant with the requirements as stated in the Solicitation and the attachments of the solicitation. Non-conformance with the instructions provided in the ITO may result in an unfavorable proposal evaluation.

Include Sufficient Detail:

The proposal shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The proposal should not simply rephrase or restate the Government's requirements. Offeror shall assume that the Government has no prior knowledge of their facilities and experience, and will base its evaluation on the information presented in the offeror's proposal.

Embellishment Not Desired:

Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are unnecessary and are not desired.

Proposal Acceptance and Validity Dates:

The proposal acceptance period is specified in Section A of the solicitation. The offer shall make a clear statement in Section A of the proposal documentation that the proposal is valid for at least the number of days identified in Section A, starting from the closing date of the solicitation.

Disposition of Proposals:

In accordance with FAR Subpart 4.803(a)(10) (Contents of Contract Files), the Government will retain one copy of all unsuccessful proposals. Unless the offeror requests otherwise, the Government will destroy extra copies of such unsuccessful proposals.

Electronic Reference Documents

All referenced documents for this solicitation are available on the Beta Sam Website under Contract Opportunities (formerly FedBizOpps) at <https://beta.sam.gov/>, unless indicated otherwise. Potential Offerors are encouraged to subscribe for real-time e-mail notifications when information has been posted to the website for this solicitation.

Amendments to Solicitation

If this RFP is amended, all terms and conditions that are not amended remain unchanged and in full force and effect. Offerors shall acknowledge receipt of any amendment and provide confirmation upon submission of the offeror's proposal.

General Information

Point of Contact:

The Buyer identified in Block 5b is the **sole** point of contact for this acquisition. Address any questions or concerns you may have to the buyer. Written requests for clarification may be sent to the buyer at the address located in Section A of the solicitation.

Discrepancies:

If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the buyer in writing with supporting rationale. The offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussions.

Electronic Offers:

Proposals may be emailed to scott.rountree@us.af.mil by the closing date.

Technical Proposal

Offerors shall bid IAW requirements in Section B. Your responses to the factors will be evaluated in accordance with Section M of the solicitation. All the requirements specified in the solicitation are mandatory.

FACTOR 1 - Technical

Formal technical proposals are not required. Offers shall propose IAW requirement in Section B and all attachments herein. Your proposal will be evaluated in accordance with Section M of the solicitation. All the requirements specified in the solicitation are mandatory.

FACTOR 2 - Price

Completion of the RFP, Section B Schedule will represent the price proposal.

FACTOR 3 – Past Performance

The offeror is not required to provide Past Performance information. Past performance information will be determined primarily based on the offeror's "Supplier Risk Score" in the Supplier Performance Risk System (SPRS) at the time of the close of the solicitation period. Past performance may also be obtained through the contractor Performance Assessment Reporting System (CPARS), similarly systems of other Government departments and agencies (MOCAS, etc), questionnaires tailored to the circumstances of this acquisition, Defense Contract Management Agency (DCMA) channels, interviews with program managers and contracting officers, and other sources known to the Government, including commercial sources.

Contract Documentation

The purpose of this section is to provide information to the Government for preparing the contract document and supporting file. The offeror's proposal shall include a signed copy of the solicitation, and Sections A through K. This includes:

Section A – Solicitation/Contract Form

Completion of blocks 12, 13, 14, 15, and 27, with name, title, and date included in block 27 of the SF 1447 is required. Signature by the offeror on the SF 1447 constitutes an offer which the Government may accept.

Section B – Supplies or Services and Costs/Prices

All pricing information shall be addressed in Section B – The Schedule of the solicitation. Information shall be limited to Contract Line Item Number (CLIN), Sub-CLIN or ELIN level pricing, including unit and extended pricing as specified in Section B.

Section C – Description/Specifications/Statement of Work

Section D – Packaging and Marking

Section E – Inspection and Acceptance

Complete Inspection and Acceptance address.

Section F – Deliveries or Performance

Complete F.O.B. Origin Clause IAW FAR 47.305(b).

Section G – Contract Administration Data

Complete Activity Address Clause.

If applicable, annotate remittance address within proposal.

Section H – Special Contract Requirements

Not applicable

Section I – Contract Clauses

Section K – Representation, Certifications, and Other Statement of Offeror's

Completed representations, certifications, acknowledgements and statements.

Exceptions to Terms and Conditions

Exceptions taken to terms and conditions of this prospective contract, to any of its formal attachments or to other parts of the solicitation shall be identified. Each exception shall be specifically related to each paragraph and/or specific part of the solicitation to which exception is taken. Provide rationale in support of the exception and fully explain its impact, if any, on the performance, schedule, cost and specific requirements of the solicitation. This information shall be provided in the format shown below. Failure to comply with the terms and conditions of the solicitation may result in the offeror being removed from consideration for award.

Table 1 - Solicitation Exceptions

Solicitation Document	Paragraph/Page	Requirement/Portion	Rationale
Model Contract, ITO, etc.	Applicable Page and Paragraph Numbers	Identify the requirement or portion to which exception is taken	Justify why the requirement will not be met

--	--	--	--

Other Information Required

Authorized Offeror Personnel

Provide the name, title, and telephone number of the company/division point of contact regarding decisions made with respect to your proposal and who can obligate your company contractually. Also, identify those individuals authorized to negotiate with the Government.

Person(s) that can obligate your company:

Name: _____

Title: _____

Telephone: _____

Person(s) authorized to negotiate with the Government:

Name: _____

Title: _____

Telephone: _____

Government Offices

Provide the mailing address, telephone and fax numbers and facility codes for the cognizant Contract Administration Office, DCAA, and Government Paying Office. Also, provide the name and telephone and fax number for the Administrative Contracting Officer (ACO).

Company/Division address, Identifying Codes, and Applicable and Designations

Provide company/division's street address, county and facility code; CAGE code; DUNS code; size of business (large or small); and labor surplus area designation. This same information must be provided if the work for this contract will be performed at any other location(s). List all locations where work is to be performed and indicate whether such facility is a division, affiliate, or subcontractor, and the percentage of work to be performed at each location.

**PART IV - REPRESENTATIONS AND INSTRUCTIONS
SECTION M
EVALUATION FACTORS FOR AWARD**

52.247-47 EVALUATION-F.O.B. ORIGIN (JUN 2003)
(IAW FAR 47.305-3(f)(2))

(a) The Government normally uses _____* methods of transportation by regulated common carrier for shipment within the contiguous United States.

* ITEM NO	MODE OF TRANSPORTATION
0001AA	Surface
0001AB	Surface
0001AC	Surface

SECTION M
EVALUATION FACTORS FOR AWARD USING
BEST VALUE PROCESS, PERFORMANCE PRICE TRADEOFF (PPT) SOURCE SELECTION PROCEDURES

A. Basis for Contract Award

This acquisition will utilize the Best Value Process, Performance price Tradeoff source selection procedures in accordance with Federal Acquisition Regulation (FAR) Part 15.101-1, as supplemented, to make an assessment for a best value award decision. Tradeoffs will be made only between price and past performance among those offerors who have been determined technically acceptable. Award will be made to the offeror who is deemed responsible in accordance with FAR Part 15.101, as supplemented, whose proposal conforms to the solicitation requirements and is judged, based on the evaluation factors, to represent the best value to the Government. The Government seeks to award to the offeror who gives the Defense Logistics Agency the greatest confidence that it will best meet the requirements affordably. This may result in an award to a higher rated, higher priced offeror, where the decision is consistent with the evaluation factors and the Source Selection Authority (SSA) reasonably determined that the technical acceptable, superior past performance of the higher price offeror outweighs the cost difference. While the Government source selection evaluation team and the SSA will strive for maximum objectivity, the source selection process, by its nature, is subjective and, therefore, professional judgement is implicit throughout the entire process. The Government intends to award without discussions/reserves the right to award without discussions. Therefore, each initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if determined necessary by the Contracting Officer.

B. Number of Contracts to be Awarded

The Government intends to select one contractor for the program. However, the Government reserves the right to award no contract at all, depending on the quality of the proposals and prices submitted and the availability of funds.

C. Rejection of Unrealistic Offers

The Government may reject any proposal that is evaluated to be unrealistic in terms of program commitments, including contract terms and conditions, or unrealistically high or low in cost/price when compared to Government estimates, such that the proposal is deemed to reflect an inherent lack of competence or failure to comprehend the complexity and risks of the program.

D. Correction Potential of Proposals

The Government will consider, throughout the evaluation, the "correction potential" of any deficiency or proposal inadequacy. The judgment of such "correction potential" is within the sole discretion of the Government. If an aspect of an offeror's proposal not meeting the Government's requirements is not considered correctable, the offeror may be eliminated from the competitive range.

PRE-AWARD SURVEY

The Government may conduct a pre-award survey (PAS) as part of this source selection. Results of the PAS (if conducted) will be evaluated to determine each offeror's capability to meet the requirements of the solicitation.

PLANT VISITS

In the event discussions are necessary, plant visits may be conducted during the evaluation phase to develop knowledge for judging the potential for correction of the deficiencies.

SOLICITATION REQUIREMENTS, TERMS AND CONDITIONS

Offerors are required to meet all solicitation requirements; such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors, subfactors to be eligible for award. Any aspect of the proposal judged to be unacceptable would render the entire proposal unacceptable. Failure to comply with the terms and conditions of the solicitation may result in the offeror being removed from consideration for award. Any exceptions to the solicitation's terms and conditions must be fully explained and justified.

EVALUATION CRITERIA FOR AWARD

(IAW FAR 13.106-2(b), 14.201-5(c), and 15.204-5(c))

For the purposes of award, offers will be evaluated for acceptability of evaluation factors described below:

FACTOR 1: Technical

FACTOR 2: Cost/Price

FACTOR 3: Past Performance

a. Order of Importance

For this solicitation, technical acceptability is a prerequisite to the best value analysis and potential trade-off between Price and Past Performance. The Order of importance is used to explain how the other factors will be traded off on technically acceptable proposals.

For all technically acceptable proposals, Factor 2 (Cost/Price) will be evaluated on a basis approximately equal to Factor 3 (Past Performance). Tradeoffs may only be made between price and past performance among those offerors who have been determined technically acceptable.

b. Evaluation Methodology

All proposals will first be evaluated for technical acceptability. Second, price will be evaluated. Concurrent with the price evaluation, past performance will be evaluated. A decision will then be made as to which proposal provides the best value to the Government.

c. Technical Factor

(1) Technical proposals are not required. Technical acceptability will be determined based on the offerors compliance with the requirement as stated in Section B Schedule and/or any referenced specifications, engineering notes and all other attachments herein.

(2) The delivery schedule will be evaluated based on the dates established in Section B of the solicitation. It should be noted that the Government's required delivery is based on the Requirements' need date, and may not be attainable. Therefore, if a proposed delivery does not meet the Government's required delivery, the proposed delivery may be considered responsive.

Technical acceptability will be ascertained based on one of the ratings described below. Proposals will be evaluated for compliance with solicitation; receipt of a responsive proposal to deliver the supplies in accordance with the solicitation and all other attachments herein.

Acceptable – The proposal meets specified minimum requirements necessary for acceptable contract performance.

Unacceptable – The proposal fails to meet specified minimum requirements necessary for contract performance. Proposals with an unacceptable rating are not awardable.

d. Cost/Price Factor (IAW 5315.305(a)(1))

(1) The offeror's cost/price proposal will be evaluated for award purposes by multiplying the proposed unit price by the total quantity. The quantity utilized for evaluation will be based on the firm quantity incorporated in Schedule B.

(2) Unrealistically low proposed costs or prices, initially or subsequently, may be grounds for eliminating a proposal from competition either on the bases that the offeror does not understand the requirement or the offeror has made an unrealistic proposal.

(3) Offerors are cautioned against submitting an offer that contains unbalanced pricing. Unbalanced pricing may increase performance risk and could result in payment of unreasonably high prices. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items is significantly over or understated as indicated by the application of cost or price analysis techniques. The Government shall analyze offers to determine whether they are unbalanced with respect to separately priced line items or subline items. Offers that are determined to be unbalanced may be rejected if the contracting officer determines that the lack of balance poses an unacceptable risk to the government.

(4) Cost/price proposals submitted by vendors shall be evaluated by multiplying the proposed unit price by the quantity desired by the Government to determine the contractor's total price.

Proposals will be evaluated as follows:

The contractor's proposal for the firm quantity under CLIN 0001 is the price factor that will be used in evaluation. Evaluation of award will be based on the proposed unit price multiplied by the required quantity.

(5) If incidental or miscellaneous expenses not related to specific CLIN structure accompany vendor proposals, these charges shall be added to the total CLIN cost/price to reach the final total cost/price proposed to the Government. In addition 'Price Analysis' shall be conducted in accordance with FAR 15.404-1, to determine 'Reasonableness' on all offers submitted by vendors.

*Unrealistically low costs/prices proposed either initially or subsequently may be grounds for elimination of an offer from the competition and shall be based upon the vendor not understanding requirements or because an unrealistic proposal was submitted.

e. Past Performance Factor

The Past Performance Evaluation is accomplished by reviewing aspects of an offeror's (1) relevant past performance and (2) recent past performance, focusing on and targeting performance, which is relevant to the technical requirement. In determining relevance, consideration will be given to the likeliness and similarity of the effort to include contract scope, contract type, and contract schedule. This information may include data on parts manufactured by other divisions, critical subcontractors, or teaming contractors, if such resources significantly influence the proposed requirement. The Government may consider relevant work as those performed for agencies of the federal, state, or local governments and commercial customers. Where relevant performance record indicates performance problems, the Government will consider the number and severity of the problems and the appropriateness and effectiveness of any corrective actions taken (not just planned or promised). The Government may review more recent contracts or performance evaluations to ensure corrective actions have been implemented and to evaluate their effectiveness.

The Government will evaluate the offeror's past performance by reviewing the offeror's record of supplying products that comply with contract requirements, including cost and schedule. Under the Past Performance factor, a Performance Confidence Assessment Rating represents the evaluation of an offeror's present and past work record to assess the Government's confidence in the offeror's probability of successfully performing as proposed.

The offeror is not required to provide Past Performance information. Past performance information will be determined primarily based on the offeror's "Supplier Risk Score" in the Supplier Performance Risk System (SPRS) at the time of the close of the solicitation period. Past performance may also be obtained through the contractor Performance Assessment Reporting System (CPARS), similarly systems of other Government departments and agencies (MOCAS, etc), questionnaires tailored to the circumstances of this acquisition, Defense Contract Management Agency (DCMA) channels, interviews with program managers and contracting officers, and other sources known to the Government, including commercial sources.

Each offeror will receive an integrated Performance Confidence Assessment rating, which is the rating for the Past Performance factor. Although the past performance evaluation focuses on performance that is recent and relevant to the technical requirement, the resulting Performance Confidence Assessment is made at the factor level and represents an overall evaluation of contractor performance. The Past Performance factor will receive one of the following performance confidence assessment ratings IAW the Department of Defense (DoD) Source Selection Procedures.

Rating	Description
SATISFACTORY CONFIDENCE	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
NEUTRAL CONFIDENCE	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
LIMITED CONFIDENCE	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
NO CONFIDENCE	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Note: With regards to the best value award decision, all offerors receiving the same past performance rating will be considered equal for the Past Performance Factor.

Offerors without a record of relevant past performance or for whom information on past performance is not available will not be evaluated favorably or unfavorably on past performance and, as a result, will receive a "Neutral confidence" rating for the Past Performance factor. In the context of acceptability/unacceptability, a neutral rating shall be considered "acceptable."

Offerors with adverse past performance information to which they have not previously had an opportunity to respond will be given the opportunity to provide clarifications concerning the adverse information.

E. Discussions

It is the Government's intent to award without discussions, therefore, it is imperative that offeror's submit their best terms initially. However, if during the evaluation period, it is determined to be in the best interest of the Government to hold discussions, offeror responses to Evaluation Notices (ENs), and the Final Proposal Revisions (FPRs) will be considered in making the source selection decision.

TRANSPORTATION DATA FOR SOLICITATIONS		PURCHASE INSTRUMENT NUMBER: FD20302200882-00	DATE INITIATED: 21 MAR 2023
COMMODITY: See Continuation		STOCK NUMBER: See Continuation	
F.O.B. TERMS RECOMMENDED AS BEST SUITED FOR THIS PROCUREMENT			
☒ ORIGIN	☐ DESTINATION	☐ OTHER <i>(Specify)</i>	☐ DATA / FIRST ARTICLE F.O.B. DESTINATION
TRANSPORTATION PROVISIONS / CLAUSES		FAR CITATION	
F.O.B. Origin		52.247-29	
Freight Classification Description		52.247-53	
Evidence of Shipment FMS		352.225-U037U	
Contact DCMA Transportation Contact DCMA Transportation on ALL "DCMA Administered" contracts prior to shipment for shipping instructions using the DCMA Shipment Instruction Request (SIR) eTool System, at http://www.dema.mil < http://www.dema.mil > for ALL FOB: Origin, Foreign Military Sales (FMS), and FOB: Destination OCONUS/Export movements to obtain the appropriate DOD regulatory clearances, shipping documentation and instructions from your cognizant DCMA Transportation Office. If you are new to DCMA, and do not already have a SIR eTool account, you will first need to request an account via DCMA External Web Access Management (EWAM) application which can be accessed at http://www.dema.mil . If you need additional assistance, email DCMA Transportation Group at: Transportation.Division@dema.mil . Do not move any freight to a water or aerial port prior to contacting DCMA or it will become frustrated. Failure to contact the responsible DCMA may result in vendor incurring additional expenditures.		Vendor Transportation Instructions	
IAW BASIC CONTRACT		FD20302200882-00	
TACRN: AAA			
TRANSPORTATION FUNDS INFORMATION:			
Purchase Instrument Line LOA: 9711X8242.0002 4FX LC5W CQALRO 000000 00000 003000 503000 F03000 FSR: 096793 PSR: 947171			
First Destination Transportation Account Code: DFMS			
Miscellaneous Obligation / Reimbursement Document:			
Second Destination Transportation Account Code:			
FMS LOA:			
Additional Funding Information:			
ITEM / SHIP TO(s):			
NSN / Pseudo NSN: 2840013872657NZ Purchase Instrument Line Item Number: 0005 Ship to (DoDAAC / MAPAC): DROE00 Mark For: DRO00X Ship To (Address): WPOD: APOD: BBP / CCP: RIC: Ship To (Remarks): TAC: DFMS		Requisition Number: DROE7430667402 Supplemental Address: DXXQAL FMS Case: QAL	
EVALUATION OF PORT BID OR PROPOSAL:			
SOLICITATION DATA NOTES:			
OTHER TRANSPORTATION DATA:			
TACRN: AAB			

TRANSPORTATION FUNDS INFORMATION:**Purchase Instrument Line LOA:** 9711X8242.0002 4FX LC5W CRBQPT 000000 00000 001000 503000 F03000 FSR: 090811 PSR: F68776**First Destination Transportation Account Code:** D586**Miscellaneous Obligation / Reimbursement Document:****Second Destination Transportation Account Code:****FMS LOA:****Additional Funding Information:****ITEM / SHIP TO(s):****NSN / Pseudo NSN:** 2840013872657NZ**Requisition Number:** DPTP5403160002**Purchase Instrument Line Item Number:** 0001**Supplemental Address:** DA6RBQ**Ship to (DoDAAC / MAPAC):** DPT006**FMS Case:** RBQ**Mark For:** DPTP00**Ship To (Address):****WPOD:****APOD:****BBP / CCP:****RIC:****Ship To (Remarks):** TAC: D586**EVALUATION OF PORT BID OR PROPOSAL:****SOLICITATION DATA NOTES:****OTHER TRANSPORTATION DATA:****TACRN:****AAC****TRANSPORTATION FUNDS INFORMATION:****Purchase Instrument Line LOA:** 9711X8242.0002 4FX 475W CQAHRO 000000 00000 031000 503000 F03000 FSR: 008687 PSR: 320229**First Destination Transportation Account Code:** DFMS**Miscellaneous Obligation / Reimbursement Document:****Second Destination Transportation Account Code:****FMS LOA:****Additional Funding Information:****ITEM / SHIP TO(s):****NSN / Pseudo NSN:** 2840013872657NZ**Requisition Number:** DROE7403097408**Purchase Instrument Line Item Number:** 0002**Supplemental Address:** DXXQAH**Ship to (DoDAAC / MAPAC):** DROE00**FMS Case:** QAH**Mark For:** DRO00X**Ship To (Address):****WPOD:****APOD:****BBP / CCP:****RIC:****Ship To (Remarks):** TAC: DFMS**EVALUATION OF PORT BID OR PROPOSAL:**

SOLICITATION DATA NOTES:				
OTHER TRANSPORTATION DATA:				
TACRN: AAD				
TRANSPORTATION FUNDS INFORMATION: Purchase Instrument Line LOA: 9711X8242.0002 4FX LC5W CRBQPT 000000 00000 001000 503000 F03000 FSR: 090811 PSR: F68776 First Destination Transportation Account Code: DFMS Miscellaneous Obligation / Reimbursement Document: Second Destination Transportation Account Code: FMS LOA: Additional Funding Information:				
ITEM / SHIP TO(s):				
NSN / Pseudo NSN: 2840DTH22011BNZRequisition Number: Purchase Instrument Line Item Number: 0003Supplemental Address: TBDTBD Ship to (DoDAAC / MAPAC): TBDTBD Mark For: TBDTBD Ship To (Address): WPOD: APOD: BBP / CCP: RIC: Ship To (Remarks): TAC: DFMS				
NSN / Pseudo NSN: 2840DTH22011DNZRequisition Number: Purchase Instrument Line Item Number: 0004Supplemental Address: TBDTBD Ship to (DoDAAC / MAPAC): TBDTBD Mark For: TBDTBD Ship To (Address): WPOD: APOD: BBP / CCP: RIC: Ship To (Remarks): TAC: DFMS				
EVALUATION OF PORT BID OR PROPOSAL:				
SOLICITATION DATA NOTES:				
OTHER TRANSPORTATION DATA:				
NAME	ORGANIZATION / OFFICE SYMBOL	COMMERCIAL / DSN PHONE	SIGNATURE	DATE
Respert, Woodnell M	406 SCMS / GULAA	478-327-3412 / 497-3412	//SIGNED//Respert, Woodnell M	21 MAR 2023

PACKAGING REQUIREMENTS																		
PURCHASE INSTRUMENT NUMBER: FD20302200882-00												VERSION: 2						
MIL-STD 129 REVISION: R												MIL-STD 2073-1 REVISION: E						
THE FOLLOWING STATEMENT IS IN COMPLIANCE WITH THE UNITED NATIONS-IMPLEMENTED RESTRICTIONS ON WOOD PACKAGING MATERIAL (WPM). THIS REQUIREMENT IS SPECIFICALLY CONCERNED WITH INVASIVE SPECIES SUCH AS THE PINWOOD NEMATODE. WPM IS DEFINED AS WOOD PALLETS, SKIDS, LOAD BOARDS, PALLET COLLARS, WOODEN BOXES, REELS, DUNNAGE, CRATES, FRAMES, AND CLEATS. THE STATEMENT BELOW CITES THE REQUIREMENTS IN DETAIL AND COVERS LUMBER FOR BUILDING CONTAINERS AND PALLETS USED FOR DELIVERIES RESULTING IN SHIPMENTS WORLDWIDE (DIRECT, OR THROUGH AIR LOGISTICS CENTERS (ALC), CONTAINER CONSOLIDATION POINTS (CCP), OR OTHER BASES). WOODEN LUMBER, WOODEN PALLET AND PACKAGING/CONTAINER STATEMENT: ALL WOODEN LUMBER, WOODEN PALLET'S, AND WOODEN CONTAINERS PRODUCED ENTIRELY OR IN PART OF WOOD PACKING MATERIAL (WPM) SHALL BE CONSTRUCTED FROM DEBARKED WOOD IN ADDITION TO THE APPLICATION OF HEAT-TREATED (HT) MATERIAL (HT TO 56 DEGREES CENTIGRADE OR 133 DEGREES FAHRENHEIT FOR 30 MINUTES). CERTIFICATION/MARKING IS REQUIRED BY AN ACCREDITED AGENCY RECOGNIZED BY THE AMERICAN LUMBER STANDARDS COMMITTEE (ALSC). FOR REFERENCE DOCUMENTATION, SEE LATEST REVISION OF "INTERNATIONAL STANDARDS FOR PHYTOSANITARY MEASURES" (ISPM)NO.15), "REGULATION OF WOOD PACKAGING MATERIAL IN INTERNATIONAL TRADE."																		
PACRN:		PACKAGING REQUIREMENT:						PRESERVATION LEVEL:		PACKAGING LEVEL:		SPI:		SPI REV:		SPI DATE:		
AAC		MIL-STD-2073-1 / SPI						MIL		B		F010711640		C		05332 - 28 NOV 2005		
ITEM(S): 2840013872657NZ 2840DTH22011BNZ 2840DTH22011DNZ																		
CODED DATA:																		
QUP		ICQ	PRES METH	CD	PRES MTL	WRAP MTL	CUSH DUNN	CT	UNIT CONT	INT CONT	UCL	SPEC MKG	UNIT PACK WEIGHT	UNIT PACK LENGTH	UNIT PACK WIDTH	UNIT PACK DEPTH	UNIT PACK CUBE	OPI
ADDITIONAL PACKAGING AND CONTAINER MARKING REQUIREMENTS:																		
SUPPLEMENTAL PACKAGING INSTRUCTION TEXT:																		
VENDOR PACKAGING INSTRUCTIONS: Military Packaging and Marking Items shall be packaged in accordance with MIL-STD-2073-1, Standard Practice for Military Packaging. Shipping and storage markings shall be in accordance with MIL-STD-129, Standard Practice for Military Marking. Shipping Container Marking Shipping containers shall be marked meeting the following criteria: (a) MIL-STD-129, Standard Practice for Military Marking. (b) Additional marking and/or bar coding requirements exceeding those of MIL-STD-129 (e.g., unit serial numbers, original equipment manufacturers (OEM) name, or OEM model number, as specified on the AFMC Form 158.																		
ORGANIZATION / OFFICE SYMBOL:		PACKAGING SPECIALIST:				PHONE NUMBER:				SIGNATURE:				DATE:				
406 SCMS / GULAA		Chartney, TJ				405-582-6047 / 312-6047				//SIGNED//Chartney, TJ				23080 - 21 MAR 2023				

SPECIAL PACKAGING INSTRUCTION			CODE ID 98748	SPI NO (TPO) F 01-071-1640
			SHEET 1 OF 6	
PART OR DRAWING NO. 4053876	NATIONAL STOCK NO. 2840-01-071-1640 NZ	CURR REV C	ILL P. BROWNING PS C. TURK CHK F. GAREY ENGR M. HEADLEE AUTH J. PATLAN	
ITEM NOMENCLATURE DUCT ASSEMBLY		ORIG DATE 82258		

PRESERVATION METHOD 10	IAW MIL-STD-2073	PACKING AS SPECIFIED BELOW AND BILL OF MATERIALS							
QUP 001		LEVEL A	SPEC ASTM-D-6251	STYLE A	TYPE III	CL 2	VRTY N/A	GR N/A	TR B
ICQ N/A		LEVEL B	SPEC ASTM-D-6251	STYLE A	TYPE III	CL 1	VRTY N/A	GR N/A	TR A
CLEANING	IAW MIL-STD-2073	GROSS CU FT		LEVEL A		LEVEL B			
DRYING	IAW MIL-STD-2073	GROSS WT LBS		59.656		59.656			
PRESERVATIVE N/A		DESIGN FRAGILITY G		N/A		N/A			
MARKING	IAW MIL-STD-129	LENGTH		WIDTH		DEPTH			
SPECIAL MARKINGS:		CARTON I.D.		0		0			
A) SPI NO. 01-071-1640		CARTON O.D.		0		0			
B) REUSABLE CONTAINER AND DUNNAGE		CNTNR I.D.		43		43			
DO NOT DESTROY		CNTNR O.D.		45 1/8		45 1/8			
C) NOT FOR OUTSIDE STORAGE		ITEM DIM		40		43 3/4			
D) METHOD 10		ITEM WT LBS		143					

CLOSURE IAW CONTAINER SPECIFICATION

NOTES:

- 1 NAIL OR STAPLE P/N'S 4, 5 AND 6 TO FORM THE BOTTOM ASSEMBLY. NAIL OR STAPLE P/N'S 7 AND 8 TO FORM THE TOP ASSEMBLY.

REVISIONS				
LTR	DESCRIPTION	DATE	ILL	APRVD
	NEW	82258	UP	JPP
A	SUPERCEDES PREVIOUS DWG.	97260	UP	JPP
B	REMOVED FIP & ADDED DETAILS	04051	PGW	JPP
C	CHANGED WRAP AND MOP	05332	PLB	CT

PART NO.	QTY.	NOMENCLATURE OR DESCRIPTION	SIZE (INCHES UNLESS SPEC)	MATERIAL SPECIFICATION
1		CONTAINER I.D.	43 X 43 X 45 1/2	SEE LEVEL OF PACK
2	4	RUBBING STRIP	2 X 4 X 43	ASTM-D-6199
3	2	SLEEPER	1 X 4 X 41 1/2	ASTM-D-6199
4	4	CLEAT	3/4 X 3/4 X 38 7/8	ASTM-D-6199 SEE DETAIL "A" 1
5	1	SUPPORT, BOTTOM	42 7/8 X 42 7/8 X 3/8	A-A-55057 SEE DETAIL "A" 1
6	4	BLOCKING, BOTTOM	23 7/16 X 7 3/4 X 1/2	A-A-55057 SEE DETAIL "A" & "X" 1
7	1	SUPPORT, TOP	42 7/8 X 42 7/8 X 1/4	A-A-55057 SEE DETAIL "B" 1
8	4	BLOCKING, TOP	19 9/16 X 6 1/2 X 1	A-A-55057 SEE DETAIL "B" & "Z" 1
9	A/R	TOP PAD	42 7/8 X 42 7/8 X 3/16	ASTM-D-4727
10	4	WRAP	80 X 36	MIL-PRF 121
11	2	FLAT STEEL STRAPPING	AS REQ'D. X 1/2 X 0.20	ASTM-D-3953

SPECIAL PACKAGING INSTRUCTION

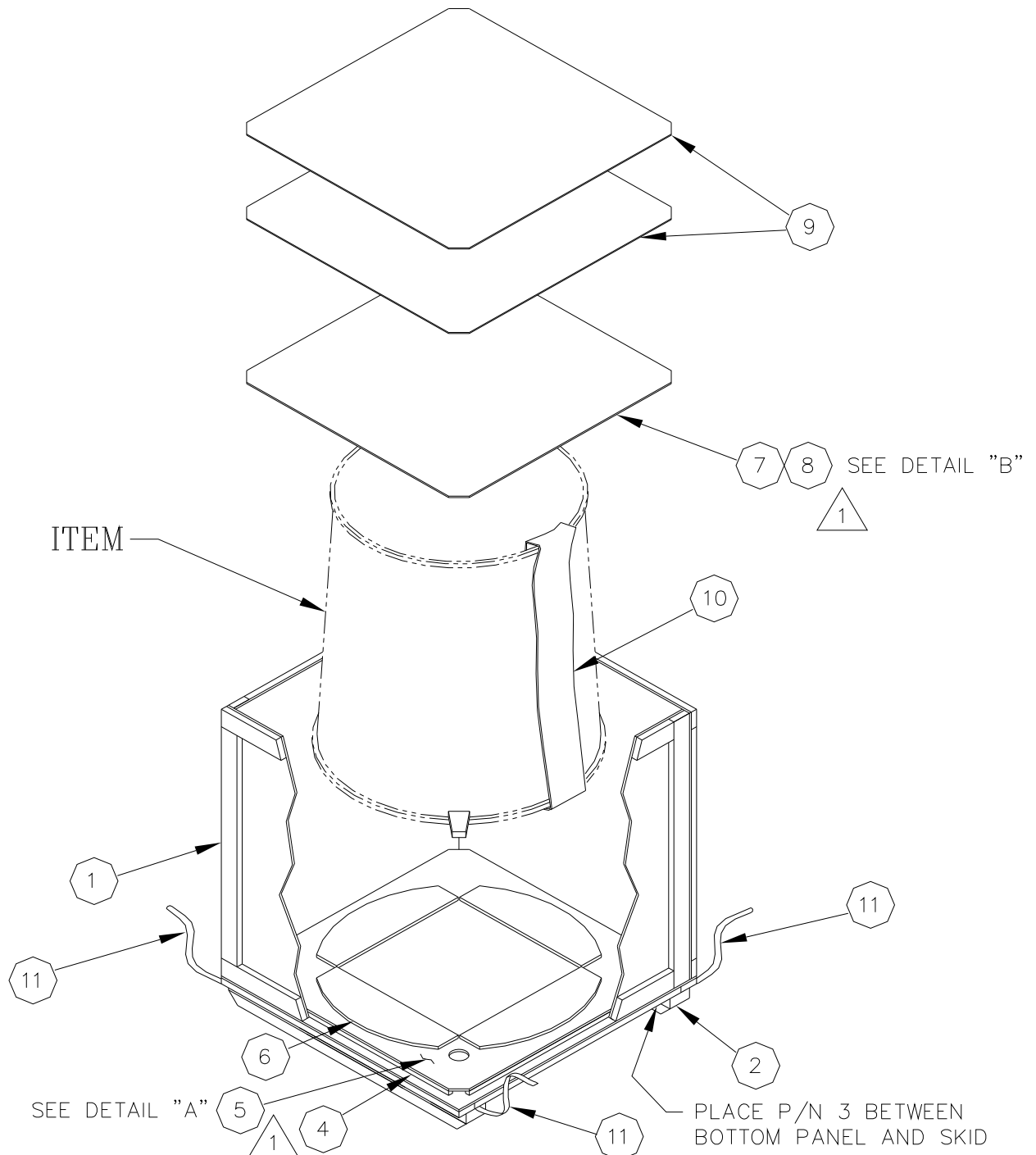
CODE ID
98748

SPI NO (TPO)
F 01-071-1640

ITEM NOMENCLATURE DUCT ASSEMBLY

SHEET 2 OF 6

ALL WOODEN PALLETS AND WOOD CONTAINERS PRODUCED OF NON-MANUFACTURED WOOD SHALL BE CONSTRUCTED FROM HEAT TREATED (HT TO 56 DEG. CENTIGRADE FOR 30 MIN.) MATERIAL AND CERTIFIED BY AN ACCREDITED AGENCY RECOGNIZED BY THE AMERICAN LUMBER STANDARDS COMMITTEE (ALSC) IN ACCORDANCE WITH NON-MANUFACTURED WOOD PACKING POLICY AND NON-MANUFACTURED WOOD PACKING ENFORCEMENT REGULATIONS BOTH DATED MAY 30, 2001.



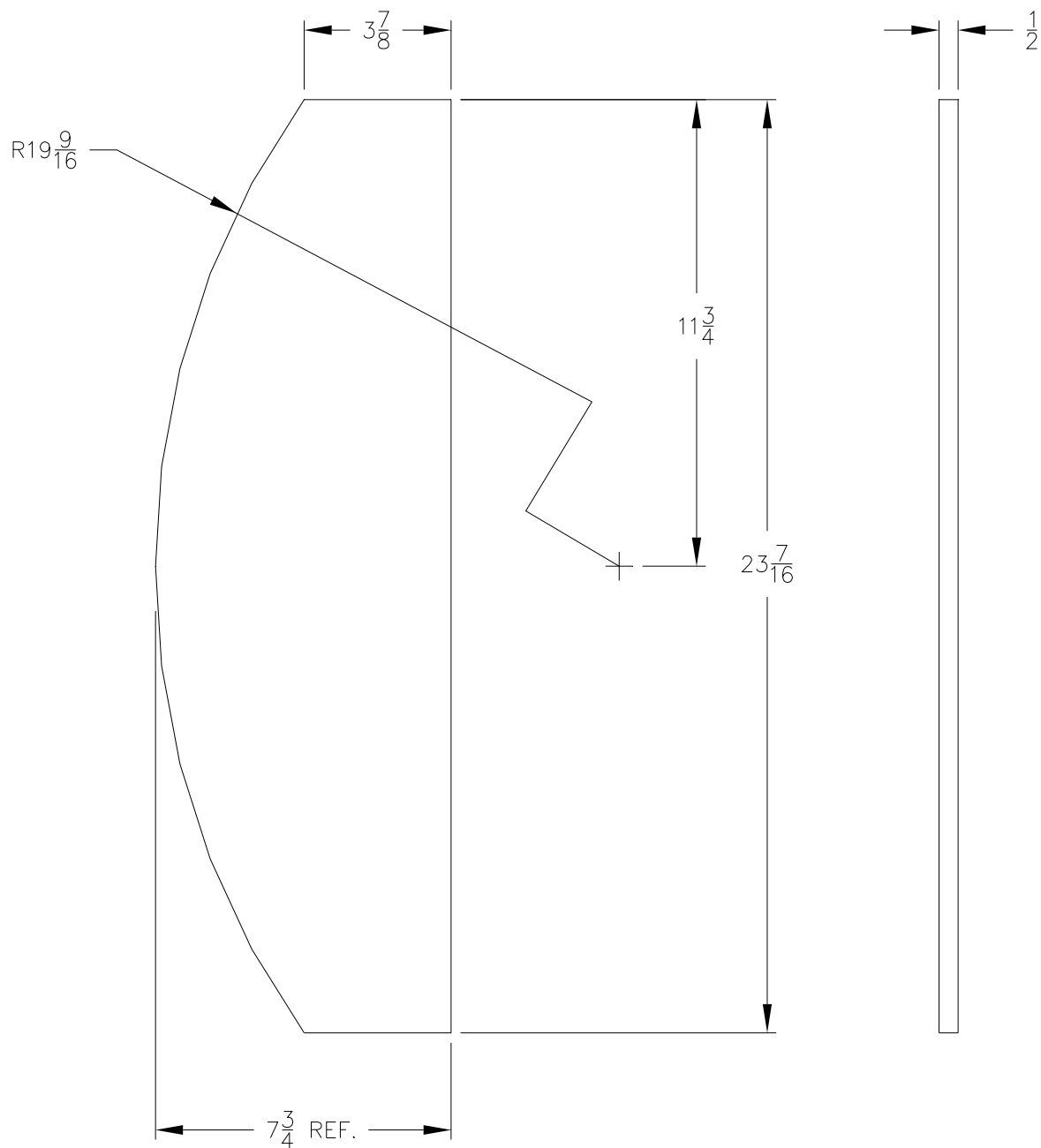
SPECIAL PACKAGING INSTRUCTION

CODE ID
98748

SPI NO (TPO)
F 01-071-1640

ITEM NOMENCLATURE
DUCT ASSEMBLY

SHEET 4 OF 6



DETAIL "X"

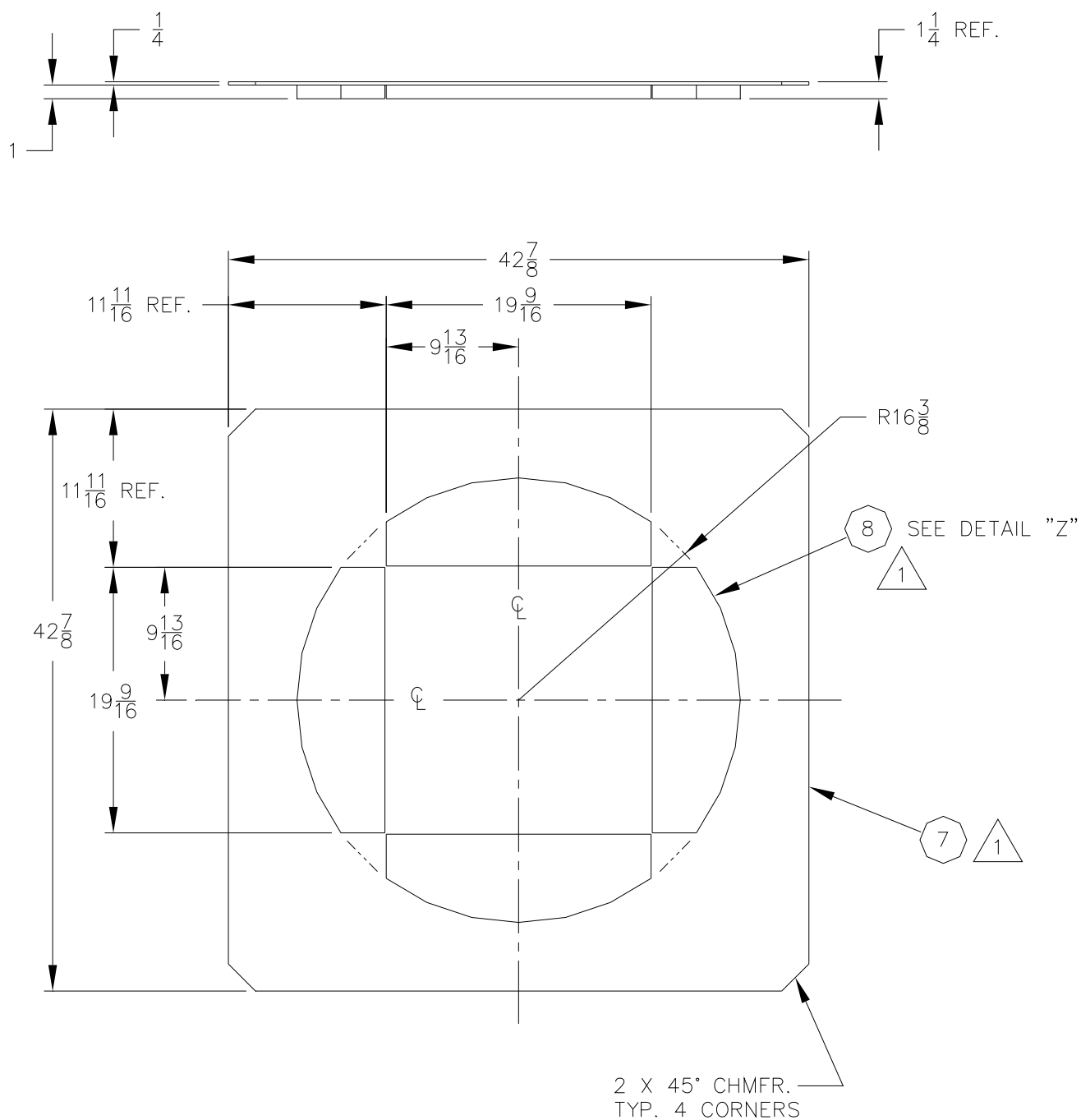
SPECIAL PACKAGING INSTRUCTION

CODE ID
98748

SPI NO (TPO)
F 01-071-1640

ITEM	NOMENCLATURE
	DUCT ASSEMBLY

SHEET 5 OF 6



DETAIL "B"

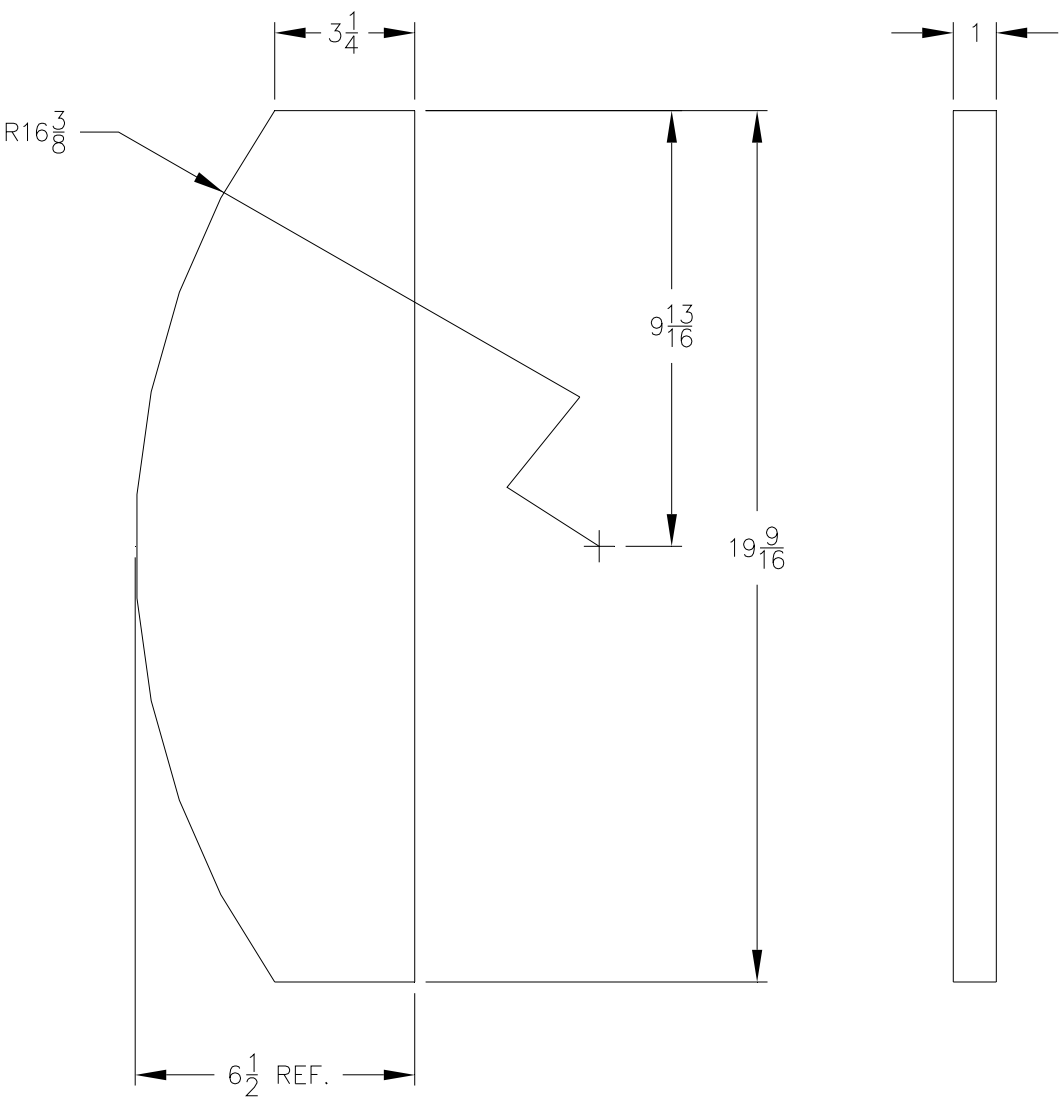
SPECIAL PACKAGING INSTRUCTION

CODE ID
98748

SPI NO (TPO)
F 01-071-1640

ITEM NOMENCLATURE
DUCT ASSEMBLY

SHEET 6 OF 6



DETAIL "Z"

ITEM UNIQUE IDENTIFICATION (IUID) CHECKLIST	
I. IUID DETAILS: DFARS 252.211.7003 SECTION (c) (1) (ii) APPLIES TO THE FOLLOWING:	
ITEM REQUIRING IUID MARKING	
NSN 2840013872657NZ	VERSION NUMBER 3
NOUN DUCT,FAN,AIRCRAFT G	
INITIATOR Shelley, Eric C	ORGANIZATION CODE / OFFICE SYMBOL AFLCMC / LPSEA1
COMMERCIAL PHONE 405-734-8789	DSN PHONE 884-8789
CAGE / REFERENCE NUMBER	
MARKING IS TO BE PERFORMED IN ACCORDANCE WITH THE LATEST VERSION OF MIL-STD-130	
MARKING GUIDANCE Recommended Marking Instruction	ENGINEERING DRAWING / ECP / ECO NUMBER
MARKING TYPE Bag/Tag	MARKING METHOD BAG/TAG
DESCRIPTION / LOCATION Bag/tag is the ONLY authorized marking method. This is a critical Safety Item, and direct part marking is NOT AUTHORIZED.	
REMARKS	
ATTACHMENT(S)	
II. EMBEDDED ITEMS SECTION (c) (1) (iii) APPLIES TO THE FOLLOWING:	
NSN	NOUN
CAGE / REFERENCE NUMBER	
ITEM IS AN EMBEDDED ITEM FOR NSN / PSEUDO NSN: 2840013872657NZ	
MARKING GUIDANCE	ENGINEERING DRAWING / ECP / ECO NUMBER
MARKING TYPE	MARKING METHOD
DESCRIPTION / LOCATION	
REMARKS	
ATTACHMENT(S)	

MANUFACTURE QUALIFICATION REQUIREMENTS (MQR) FOR PROPULSION CRITICAL SAFETY ITEMS (CSI) & CRITICAL APPLICATION ITEMS (CAI)

1. APPLICATION.....	2
2. SCOPE.....	2
3. SUBMITTAL CONSIDERATION.....	2
4. TECHNICAL DATA REQUEST	3
5. FORMAT FOR ALL SUBMITTED DOCUMENTATION	4
6. USE OF PROPRIETARY DATA.....	4
7. COMPANY PROFILE	5
8. SOURCE APPROVAL REQUEST (SAR)	9
9. DOCUMENT SUBMITTAL	16
10. EVALUATION METHODS.....	16
11. APPROVAL DURATION	17
12. SOURCE RESUBSTANTIATION REQUEST (SRR)	17
13. PROCESS CHANGE REQUEST (PCR)	18
APPENDIX A: SELF-ASSESSMENT CHECKLIST (SAC)	20
APPENDIX B: SIGNIFICANT INDUSTRIAL PROCESS FORM	22
APPENDIX C: COVER LETTER REQUIREMENTS	24
APPENDIX D: SOURCE OF SUPPLY MATRIX FOR MODULES/ASSEMBLIES.....	25
APPENDIX E: TECHNICAL DATA RIGHTS CERTIFICATION LETTER	26
APPENDIX F: SIMILAR ITEM COMPARISON MATRIX	27
APPENDIX G: PROCESS CHANGE REQUEST (PCR) / SOURCE RESUBSTANTIATION REQUEST (SRR)	28
APPENDIX H: DEFINITIONS	29

1. APPLICATION

- 1.1. This MQR applies to CSI and CAI with an Acquisition Method Suffix Code (AMSC) of C, D, K, M, N, P, Q, R, S, V, and Z within the Propulsion Sustainment Division. This MQR does not apply to items with an AMSC of G, A, B, H, L, U, and Y.
- 1.2. This MQR establishes technical requirements, which Potential Sources (PS) must satisfy in order to obtain Engineering Support Activity (ESA) approval to manufacture propulsion items.

2. SCOPE

- 2.1. The PS must have a valid Company Profile on record with the ESA in order to gain source approval status. If one does not exist the PS must submit one. Company Profile requirements are described in section 7.
- 2.2. In order to gain source approval status, the PS must submit a SAR. The SAR requirements are described in section 8.
- 2.3. The Company Profile and SAR will be reviewed by the ESA and the PS will either be made an approved source, or denied source approval. See section 10.
- 2.4. Source approval status expires after 3 years for CSI, and 7 years for CAI. Sources that deliver parts on government contract, maintain source approval status. See section 11.
- 2.5. Approved sources shall submit a Source Resubstantiation Request (SRR) prior to expiration of the current approval period (recommended 60 days) in order to renew the approval status duration. See section 12.
- 2.6. Any time a change to the SAR documentation occurs, the approved source must submit a Process Change Request (PCR) for review by the ESA. See section 13.
- 2.7. The ESA may revoke the approval status of a PS at any time per FAR 9.207.

3. SUBMITTAL CONSIDERATION

- 3.1. The PS should consider submitting a SAR for evaluation after determining that the USAF is in need of the subject item. This can be done by considering the following:
 - 3.1.1. Has the United States Air Force (USAF) listed a requirement in the System for Award Management (SAM) at <https://beta.sam.gov> or DLA Bid Board System (DIBBS) at <https://www.dibbs.bsm.mil/>?

3.1.2. Has the procurement history for the item been researched and determined to be active?

3.1.3. Is the subject item listed in the Requirement Projection on the Web (RPOW)?

3.1.3.1. The RPOW can be found on the Strategic Alternative Sourcing Program Office (SASPO) website: www.tinker.af.mil/Home/429SCMSSASPO/.

3.1.3.2. The forecasts contained on the RPOW may or may not generate due to variability in customer demands and priorities. The forecast data is for planning purposes only and does not constitute an invitation for bid or request for proposal and is not a commitment by the government to purchase the described items.

3.2. Any questions regarding SAR submission or the RPOW should be directed to either the Air Force Small Business Office (SBO) or SASPO.

4. TECHNICAL DATA REQUEST

4.1. Requests related to any procurement announcement should be submitted to the announcing Contracting Officer.

4.2. If no procurement announcement exists, requests should be submitted to the Tinker Engineering Drawing Public Sales Office at the following address/email:

AFLCMC/LZPEF
Tinker Engineering Drawing Public Sales
3001 Staff Drive, Suite 1AB82A
Tinker AFB, OK 73145-3041
Phone: 405-736-4676
Email: OCALC.LGLDO.PUBLIC@US.AF.MIL

4.3. Requests should identify the specific drawing(s) and specification(s) being requested, along with the solicitation information (if a procurement announcement exists).

4.4. Requests should be made on company letterhead along with an approved DD Form 2345 or Export Control License.

5. FORMAT FOR ALL SUBMITTED DOCUMENTATION

- 5.1. All financial data must be redacted from submitted documentation.
- 5.2. Packages should be submitted on a Compact Disk-Recordable (CD-R), Digital Versatile Disc Recordable (DVD-R), or through an approved government file transfer system, in a .pdf file format.
 - 5.2.1. The package can be a single .pdf file with indexes linked to each element, or a series of files/folders for each element.
 - 5.2.2. If the PS is submitting Company Profile documents at the same time as a SAR package, the Company Profile documents should be provided in a separate .pdf file and/or in a separate and clearly identified folder.
 - 5.2.3. All documents should be scanned for viruses prior to submission.
 - 5.2.4. If the CD-R is encrypted or password protected, provide a point of contact that can give access to the documentation. Zip files cannot be encrypted.
- 5.3. Packages submitted on a Compact Disk-Rewritable (CD-RW), Digital Versatile Disc Rewritable (DVD-RW), or flash drive will not be accepted.
- 5.4. Company Profile and SAR packages must follow the order called out in Tables 1 and 2.
- 5.5. For all Company Profile and SAR submissions, a table of contents is expected.
- 5.6. Certain elements may not be required depending on the circumstances of the submittal. If an element is not applicable, the PS must provide a statement explaining why this is the case. Do not leave any element blank.

6. USE OF PROPRIETARY DATA

- 6.1. The PS is not to utilize intellectual property (IP) of any third parties without appropriate authorization of the IP owner. The PS is cautioned that no part of the government MQR is intended to endorse or encourage the improper use of IP developed by the Original Equipment Manufacturer (OEM) or any other third party.

7. COMPANY PROFILE

Note: Any PS seeking source approval must have a valid Company Profile on record with the ESA. Initial submission of a Company Profile should include all of the requirements listed in Table 1 and described in Elements 1-9. Company Profiles can be submitted at any time, standalone or in conjunction with a SAR. All information provided in the Company Profile may be kept by the ESA for use in future SAR reviews. A Company Profile is required for each unique CAGE code.

Company Profile Requirements	
ELEMENT 1. Company Brochure/Website	
ELEMENT 2. Quality Assurance Certificate (QAC)	
ELEMENT 3. Self-Assessment Checklist (SAC)	
ELEMENT 4. Quality Assurance System (QAS) Manual	
ELEMENT 5. Equipment List	
ELEMENT 6. DD Form 2345 or Export Control License	
ELEMENT 7. Quality History	
ELEMENT 8. Significant Industrial Process (SIP) Certifications	
ELEMENT 9. Sub-Tier Supplier Info.	1. List of all Sub-Tier Suppliers (STS)
	2. All STS Quality Assurance Certifications
	3. Any STS Significant Industrial Process Certifications

Table 1. Company Profile Requirements

7.1. Element 1, COMPANY BROCHURE/WEBSITE

7.1.1. Provide a company brochure and/or website.

7.2. Element 2, QUALITY ASSURANCE CERTIFICATE (QAC)

7.2.1. Provide one of the following QAC with a valid expiration date: ISO 9001, AS9100, or NATO AQAP-2070.

7.3. Element 3, SELF-ASSESSMENT CHECKLIST (SAC)

7.3.1. The PS must complete and submit a SAC (Appendix A).

7.3.2. The SAC must be signed by an authorized binding company official (i.e. President, Owner, or Facility General Manager).

7.3.3. If artifacts are used to support any of the items on the checklist, they can be attached to the checklist. However, not all items require artifacts.

7.4. Element 4, QUALITY ASSURANCE SYSTEM (QAS) MANUAL

- 7.4.1. Provide a copy of the PS's QAS manual and all supporting/referenced documentation.

7.5. Element 5, EQUIPMENT LIST

- 7.5.1. Provide a complete list of all equipment owned and used for the manufacturing and repair of parts by the PS.

7.6. Element 6, DD FORM 2345 OR EXPORT CONTROL LICENSE

- 7.6.1. If located within the United States or Canada, provide a copy of the PS's DD Form 2345 with a valid expiration date.
- 7.6.2. If not located within the United States or Canada, provide a copy of the PS's Export Control License with a valid expiration date.

7.7. Element 7, QUALITY HISTORY

Note: Nonconformance is not necessarily perceived as an increase in risk when considering source approval. Identification of nonconformance can illustrate a successful quality assurance program.

- 7.7.1. Provide a PS quality history summary of Deficiency Reports (DR) experienced for the last 36 months including but not limited to: internal deficiencies, commercial deficiencies, FAA Service Bulletins, Maintenance Review Board (MRB) actions, Quality Deficiency Reports (QDR), Laboratory Quality Review Orders (LQRO), Offeror Report of Nonconformance (ORON), Supplier Reports of Nonconformance (SRON), Material Deficiency Reports (MDR), statistical reports of nonconformance and nonconforming material rejection reports. If the PS facilities have not experienced any quality deficiencies within the last 36 months, provide a document stating as such.
 - 7.7.1.1. If government source inspections were conducted, the Government Quality Assurance Representative will coordinate on the summary. Otherwise, an authorized binding company official (i.e. President, Facility General Manager, or Quality Assurance Manager) must coordinate on the summary.
 - 7.7.1.2. The summary will include the following data: part number, nomenclature, feature, deficiency, quantity, date, and corrective action.

- 7.7.2. Provide an example corrective action request and corrective action plan or resolution for an identified deficiency, if one exists.

Note: Elements 8 and 9 may be reviewed during the SAR, SRR, and PCR evaluation processes. If the PS claims the use of a SIP or STS in any of these requests, the referenced SIP or STS must be included in, or added to the Company Profile at that time.

7.8. Element 8, SIGNIFICANT INDUSTRIAL PROCESS (SIP) CERTIFICATIONS

- 7.8.1. Provide any SIP certifications possessed by the PS with a valid expiration date.

- 7.8.2. SIP certification is required for those processes denoted by grey highlight in Appendix B. Methods of certification include:

- 7.8.2.1. National Aerospace & Defense Contractors Accreditation Program (NADCAP) certification.

- 7.8.2.2. OEM Certification and/or audit.

- 7.8.2.3. Department of Defense (Air Force, DCMA, Navy, or Army) certification and/or audit.

- 7.8.2.4. Other external audit and/or certification.

- 7.8.2.4.1. Requires the submission of documents showing the process and procedure used for certification to be reviewed by the ESA in order to determine acceptability of alternative certification.

7.9. Element 9, SUB-TIER SUPPLIER (STS) INFORMATION

- 7.9.1. Provide a complete list of all STS that the PS is currently using for government contracts, or may use in future source approval requests. List must include the STS company name and CAGE code.

- 7.9.2. For each STS, provide one of the following QAC with a valid expiration date: ISO 9001, AS9100, NATO AQAP-2070, or Aerospace Quality System (AQS) NADCAP.

- 7.9.3. Provide any SIP certifications possessed by each STS listed, with a valid expiration date. See Section 7.8.2 for requirements.

7.10. COMPANY PROFILE EVALUATION

Note: The Company Profile does not have an inherent expiration date. However, elements within the profile do expire and must be updated to maintain a valid Company Profile.

7.10.1. The initial review of the Company Profile includes the examination of all elements described in sections 7.1-7.7.

7.10.2. During the review of any future SAR, SRR, or PCR submitted by the PS, the Company Profile will be reviewed in order to determine if the following requirements are met:

7.10.2.1. All certificates must not be expired.

7.10.2.1.1. Elements 2 and 6 have inherent expiration dates that, if expired, must be renewed before source approval status can be granted.

7.10.2.1.2. If a SIP requiring certification is identified in the request, a valid certificate must be included in either Elements 8 or 9.

7.10.2.2. Any STS identified in the request must be included in Element 9 with a valid QAC provided.

7.10.3. If any deficiency in the Company Profile is identified at the time of review, the PS may be issued a conditional approval letter pending resolution of these issues. See section 10 for details on corrective actions.

7.11. COMPANY PROFILE AMENDMENTS

Note: It is encouraged for the PS to maintain a valid and up to date Company Profile at all times in order to expedite the SAR evaluation process.

7.11.1. At any time, the PS may submit amendments or updates to the Company Profile.

7.11.1.1. Common updates include: Replacing expired certificates (QAC, SIP, DD Form 2345), adding a new STS, or notification of a significant change to any element of the Company Profile.

7.11.2. Company Profile amendments can be submitted per section 9.

7.11.3. If the PS is bought or sold by a third party the PS must submit a novation letter detailing the specifics of this change in company makeup/structure.

8. SOURCE APPROVAL REQUEST (SAR)

Note: Any PS seeking source approval must have a valid Company Profile on record with the ESA. If one does not exist, the PS cannot be awarded source approval. See section 7 for details.

8.1. SAR Categories Determination

8.1.1. CATEGORY I (Actual Item)

- 8.1.1.1. This category covers PS who manufacture the exact subject item, using OEM technical data, for the prime contractor, OEM, DOD, civil agency, foreign government, or the civil sector under Federal Aviation Administration (FAA).

8.1.2. CATEGORY II (Similar Item)

- 8.1.2.1. This category covers PS who have not previously manufactured the exact subject item, but have manufactured other items similar in material, coatings, design features, industrial processes, etc. for the prime contractor, OEM, DOD, civil agency, foreign government, or the civil sector under FAA. Multiple similar items may be used to demonstrate relevant experience. Similarity is not limited to aerospace applications.

Note: Category III (No Experience) and IV (Reverse Engineering) SARs as defined by the AFMCI 23-113 are not covered by this QR document. The ESA will direct sources when a need arises for reverse engineered components and will provide relevant requirements at that time. Category III and IV SARs submitted under this QR will not be evaluated.

8.2. A SAR consists of two (2) packages of information:

8.2.1. SUBJECT ITEM PACKAGE (Elements A-I)

- 8.2.1.1. Includes all of the required engineering data, proposed manufacturing plan, and other legal documents required to manufacture the subject item.

8.2.2. DEMONSTRATION PACKAGE (Elements J-M)

- 8.2.2.1. Demonstrates that the PS has recently manufactured and delivered either the subject item, or part(s) of similar complexity compared to the subject item.

- 8.2.2.1.1. For Category II SARs, if more than one similar item is required to demonstrate relevant experience, the PS must submit a demonstration package for each unique similar item.

8.3. ASSEMBLY SAR REQUIREMENTS

- 8.3.1. Any SAR package submitted for an assembly, module, or whole engine must meet all of the additional requirements called out in Appendix D. Submit the source of supply matrix in Element A along with the cover letter.

8.4. SAR WAIVERS

- 8.4.1. The ESA may decide to waive certain requirements in special circumstances. If the PS has a letter from the ESA waiving them of certain SAR requirements, provide this letter in place of said requirements.

Section		Element	Title
Subject Item Package		A	Cover Letter
	Engineering Data	B	Subject Item Technical Data
	Manufacturing Plan	C	Proposed Production Documents
		D	Sub-Tier Supplier (STS) List
		E	Significant Industrial Processes (SIP)
		F	Calibrated Equipment List
	Licensing/Legal Documents	G	Technical Data Rights Certification Statement
		H	License Agreements
		I	Government Quality Assurance Compliance
Demonstration Package		J	Similarities/Differences Summary*
		K	Similar Item Technical Data*
		L	Demonstration Production Documents
		M	Purchase Orders and Shipping Documents

Table 2. SAR Requirements Outline

*N/A for Category I SARs

8.5. Element A, COVER LETTER

- 8.5.1. Provide a cover letter (Appendix C).
- 8.5.2. For assemblies, modules or whole engine SAR packages provide the Source of Supply Matrix (Appendix D).

8.6. Element B, SUBJECT ITEM TECHNICAL DATA

8.6.1. Provide the subject item Engineering Data List (EDL).

8.6.1.1. The EDL is the complete list of all technical data required to manufacture an item. This may include drawings (casting, forging, source control, master, assembly, detail, schematic, airfoil data, etc.), specifications, parts lists, etc.

8.6.2. Provide the latest legible revision of all technical data listed on the EDL.

8.6.2.1. For specifications, only the title page is required.

8.6.2.2. Proprietary technical data may be redacted to only reveal the drawing/specification number, title, revision, and proprietary statement.

8.7. Element C, PROPOSED PRODUCTION DOCUMENTS

Note: Proposed Production Documents consist of Travelers, Process Operation Sheets (POS) and Inspection Method Sheets (IMS). Together, these documents must demonstrate that the PS has an adequate manufacturing plan and that traceability of the work being performed is achieved.

8.7.1. All Proposed Production Documents must meet the following requirements:

8.7.1.1. Must be created and owned by the PS.

8.7.1.2. Must include any and all proprietary production documents.

8.7.1.2.1. The process description may be redacted for proprietary processes.

8.7.1.3. Must establish traceability.

8.7.1.3.1. Proper traceability connects the work being performed to the facility, performing operator, specific part, and the date that the work is being performed.

8.7.1.3.2. An example of adequate traceability is the use of page numbers along with a unique document number that is present on each page. On the first page of the document, the date, company name, cage code is present, and the travelers have stamp blocks that allow the operator to indicate the work that is accomplished by the specific operator.

8.7.1.4. Any sub-vended process listed must identify the STS by name and CAGE at each applicable operational step with clearly identified process or procedure.

8.7.1.4.1. Any STS referenced in the production documents must be included in Element D, and the PS Company Profile.

8.7.2. TRAVELERS

8.7.2.1. Travelers are a detailed step-by-step account of the proper sequenced procedures necessary to manufacture the subject item.

8.7.2.2. Must include the following:

8.7.2.2.1. The operation number, process description, location, software data file name, etc. necessary to control the manufacture operations.

8.7.2.2.2. Signature blocks for in-process operator and/or inspector signing or stamping.

8.7.2.2.3. Tracked disposition of all parts during the entire manufacturing operation to include rejects and laboratory samples.

8.7.2.2.4. References to specific IMS or POS in applicable steps.

Note: Travelers enclosed in this section are not to be considered a replacement for detailed Process Operation Sheets (POS). Lack of detailed POS pertaining to manufacture may be cause for disapproval of the PS's SAR.

8.7.3. PROCESS OPERATION SHEETS (POS)

8.7.3.1. POS are a detailed description of the process being performed.

8.7.3.2. POS should include an identification of the equipment/tooling used in the process, material handling procedures, set-up procedures, necessary safety precautions, any process specific drawings/graphics and a description of the in-process parameters used (i.e. speed and feed rates).

8.7.4. INSPECTION METHOD SHEETS (IMS)

8.7.4.1. IMS are a detailed step-by-step account of the proper sequenced procedures necessary to inspect the subject item.

8.7.4.2. Must include part number(s), exact dimensions and proper units.

8.7.4.3. Pass/Fail dimensions are not acceptable, except when using a part specific “go-no-go” gage. This type of gage must be included in Element F.

8.7.4.4. If a sampling plan is used, provide the sampling plan to be reviewed.

8.8. Element D, SUB-TIER SUPPLIER (STS) LIST

Note: All STS identified in this section must be included in the PS Company Profile, or the SAR will not be approved until the issue is resolved. If a new STS must be added to the PS Company Profile, submit a Company Profile amendment per sections 7.9 and 7.11 of this document.

8.8.1. Provide a matrix, Table 3, with the CAGE, Company Name, and a short description of any work being performed by STS.

Sub-Tier Suppliers Used to Manufacture Subject Item		
CAGE:	Company Name:	Description of support:
XXXXXX	Example Company #1	Provides raw material
YYYYYY	Example Company #2	Performs SIP for the PS (See Element E)
...	...	...

Table 3. Example of Sub-Tier Supplier Matrix

8.9. Element E, SIGNIFICANT INDUSTRIAL PROCESSES (SIP)

Note: Any SIP that requires quality certification, identified in this section, must be included in the PS Company Profile or the SAR will not be approved until the issue is resolved. If a new SIP certification must be added to the PS Company Profile, submit a Company Profile amendment per sections 7.8 and 7.11 of this document.

8.9.1. Provide a matrix (Appendix B) indicating the performing cage code (PS or STS) for any and all SIP performed during the manufacturing of the subject item.

8.10. Element F, CALIBRATED EQUIPMENT LIST

8.10.1. Provide a matrix listing all equipment/tooling requiring calibration to include: part number, serial number, location, and date of calibration and expiration for each item used in the manufacturing of the subject item.

8.10.1.1. This includes any “go-no-go” gages referenced in section 8.7.4.

8.11. Element G, TECHNICAL DATA RIGHTS CERTIFICATION STATEMENT

- 8.11.1. The PS must provide a certification of rights to use technical data in the format and wording provided in Appendix E, signed on company letterhead by an authorized binding company official (i.e. President, Owner, or Facility General Manager).
- 8.11.2. This Certificate states that the technical data was obtained by legal means and the company has the rights to use the data supplied in the SAR for manufacture purposes.
- 8.11.3. It is acceptable for the certificate to address multiple PN/NSN on a single certificate.

8.12. Element H, LICENSE AGREEMENTS

- 8.12.1. For an item where proprietary data is used, or with an AMSC code of V, provide an ownership statement or a copy of the licensee agreement between the PS and the data owner.
- 8.12.2. If a STS owns a proprietary process, the PS will provide a letter of support from the STS. The letter should state the duration of the proprietary process support, availability and capacity.

8.12.3. MASTER TOOLING CERTIFICATION

- 8.12.3.1. Provide certification of the right to use, and access the following, as applicable to the latest item technical data and/or drawing(s) required for manufacture: any required master tooling, special tooling/test equipment, mylars (stable base drawings), glass layout, loft data, and contour data.

8.13. Element I, GOVERNMENT QUALITY ASSURANCE COMPLIANCE

- 8.13.1. Provide a statement that the PS will comply with all government imposed quality assurance provisions, testing requirements, etc. as identified in the solicitation or contract for the subject item.

Note: For Category I SAR submittals, Elements J and K are not required.

Note: For Category II SAR submittals, if more than one similar item is required to demonstrate relevant experience, multiple demonstration packages consisting of elements J-M must be submitted.

8.14. Element J, SIMILARITIES AND DIFFERENCES BETWEEN SUBJECT AND SIMILAR ITEM(S)

8.14.1. Provide a comparison matrix (Appendix F) identifying the specific similarities and differences in materials, coatings, design features, industrial processes, etc. between the subject and similar item(s).

8.14.1.1. If more than one similar item is being used to demonstrate relevant experience, the comparison matrix should include a column for each item being compared in a single matrix. Provide a copy of this matrix in each demonstration package submitted.

8.15. Element K, SIMILAR ITEM TECHNICAL DATA

8.15.1. Provide all technical data used in the manufacturing of the similar item.

8.16. Element L, DEMONSTRATION PRODUCTION DOCUMENTS

8.16.1. Provide copies of all demonstration travelers, POS, and IMS used in the manufacturing of the demonstration item. Blank documents do not meet this requirement.

8.17. Element M, PURCHASE ORDERS AND SHIPPING DOCUMENTS

8.17.1. Provide copies of the purchase orders and shipping documents that demonstrate that the PS manufactured and delivered the demonstration item.

8.17.1.1. These documents must be from the same contract as the demonstration production documents provided in Element L.

8.17.1.2. Contracts must be with the Prime/OEM, DOD, foreign government, or other commercial customers.

8.17.1.3. These documents must be from a date within three (3) years for CSI, and seven (7) years for CAI, as evidenced by the latest shipping document provided. The threshold will be evaluated against the date that the SBO receives the SAR.

8.17.1.3.1. Highlight the date on all documents in this section.

8.17.1.4. All financial information must be removed, else the SAR may be returned.

8.17.1.5. If a contract was terminated, state the reason for the termination.

9. DOCUMENT SUBMITTAL

9.1. If the part is AF managed, documents should be submitted to:

AFSC/SB
Solicitation Number: (If known)
3001 Staff Drive, Suite 1AG85A
Tinker AFB, OK 73145-3009
Email: afsc.sb.workflow@us.af.mil

9.2. If the part is DLA managed, documents should be submitted to:

DLA Aviation Richmond
ATTN: Small Business Office/DU
SAR Program Manager
Solicitation Number: (If known)
8000 Jefferson Davis Highway
Richmond, VA 23297

9.3. All Company Profile documents should be submitted to the SBO per section 9.1.

10. EVALUATION METHODS

10.1. The ESA will evaluate the submitted SAR package using the criteria specified within this requirements document.

10.1.1. If the ESA identifies any issues, missing data, or discrepancies during the evaluation of the submitted package, the ESA will provide the PS with a list of issues that need to be resolved.

10.1.1.1. The PS will be given a Data Submission Date (DSD) of 5 working days to provide the requested data. A longer DSD may be provided upon the PS request, if determined acceptable by the ESA.

10.1.1.1.1. If the DSD is met and the PS provides all missing/required data then the ESA will approve the package per section 10.1.2.

10.1.1.1.2. If the DSD is not met, or the PS cannot provide the required missing data, then the ESA will complete the evaluation and forward a disapproval letter with a list of issues that need to be resolved. The PS will be encouraged to resubmit the request once all identified issues have been resolved.

10.1.2. If the PS provides all of the specified data in the required format, the ESA will issue an approval letter with an expiration date in accordance with section 11 and update the approved source list accordingly.

10.2. All transactions required to evaluate the approval request will be documented. All necessary artifacts will be recorded and retained in an ESA designated information system.

10.3. The PS is responsible for retaining all disposition letters received from the government.

10.4. The ESA retains the right to request an on-site audit of the vendor's facility during Company Profile, SAR, SRR, or PCR evaluation, or at any time during the vendor's approval period.

11. APPROVAL DURATION

11.1. ESA source approval expiration is three (3) years for CSI and seven (7) years for CAI. The expiration date will be based off of the date printed on the ESA approval letter.

11.2. Prior to source approval expiration, the approved source must submit an SRR in accordance with section 12 in order to renew their approval status.

11.3. Sources that are delivering the subject item on a government contract maintain their approval status and do not require source resubstantiation until there is a lapse in delivery/contract award of greater than three (3) years for CSI and seven (7) years for CAI.

11.4. The ESA may decide to revoke source approval status at any time per FAR 9.207.

12. SOURCE RESUBSTANTIATION REQUEST (SRR)

Note: Only sources that are currently approved to manufacture the subject item (must have been approved through the USAF SAR process and be listed on the AFMC Form 761) may submit an SRR. Sources that are delivering the subject item on government contract maintain their approval status and do not require source resubstantiation until there is a lapse in delivery/contract award of greater than three (3) years for CSI and seven (7) years for CAI (this does not include sources who were awarded government contracts without going through the USAF SAR process).

12.1. The SRR provides an approved source the opportunity to renew the approval status of a previously approved SAR through the review of any and all changes to the contents of the referenced SAR since the time of approval.

12.2. Provide the SRR (Appendix G).

12.2.1. Describe any and all changes made to the contents of the referenced SAR package since the time of approval.

12.2.2. The original SAR approval letter should be attached to the SRR.

12.2.3. The SRR must be in the format provided in Appendix G and signed on company letterhead by an authorized binding company official (i.e. President, Owner, or Facility General Manager).

12.2.4. Any SAR element identified as “Updated” must be submitted for review.

12.2.4.1. All changes within the submitted documents should be highlighted.

12.3. For sources that previously delivered the subject item on a government contract, submit the quality history, any DRs, and the latest purchase orders and shipping documents from the referenced contract.

12.4. Upon review of the SRR, the ESA may request additional information and documentation for review.

12.5. If the changes are determined to be acceptable, the ESA will issue a new approval letter.

13. PROCESS CHANGE REQUEST (PCR)

13.1. The approved source is responsible for submitting a PCR any time a change to the contents of the Subject Item Package occurs.

13.1.1. This may include, but is not limited to: changes to the STS list, using different equipment/tooling, and/or changing the sequence of operations on the travelers.

13.1.2. Failure to provide a formal PCR when a significant change occurs could result in a revocation of the source’s approval status.

13.2. Provide the PCR (Appendix G) in accordance with section 12.2.

13.3. Upon review of the PCR, the ESA may request additional information and documentation for review.

13.4. If the changes are determined to be acceptable, the ESA will issue a new approval letter.

This document reviewed and signed by:

Competition Advocate AFSC/PZCAB
Competition Advocate DLA Aviation/AOCA
Head of Contracting DLA Aviation /AO
Head of Contracting AFSC/PZA
Chief Engineer Fighter Engines AFLCMC/LPE
Chief Engineer Tanker/Bomber Engines AFLCMC/LPE
Small Business Office AFSC/SB
SASPO Office AFSC/429 SCMS

Signatures kept on file by AFLCMC/LPE

For a copy of the signatures, please contact AFLCMC.LPE.SourceEvalTeam@us.af.mil.

The authority granted by the signatures for qualification requirement shall not exceed seven (7) years past the signed date. Qualification requirements shall be examined and revalidated if the last signed date is over seven (7) years old per FAR 9 .202(f).

APPENDIX A: SELF-ASSESSMENT CHECKLIST (SAC)

1. Complete the SAC using the checklist below.

1.1. In the references and artifacts column, identify the location within the PS QAM, or other documentation, where the requirement is met.

1.2. If other documentation is used to cover items on this list, provide the specified document.

Item No.	Review Item	References and Artifacts	Pass
1.	Production Engineering and Planning		
1.1.	Government furnished data		
1.1.1.	Are contractor's procedures adequate to verify currency of depot/Naval Air Systems Command (NAVAIR)/Army Aviation and Missile Command (AMCOM)/Air Force Material Command (AFMC) technical publications, Local Engineering Specifications (LES)/Local Process Specifications (LPS)/Engineering Change Proposals (ECP), Maintenance Engineering Orders (MEO), Manual Change Revisions (MCR), and Engineering Drawings		☐
2.	Production Control		
2.1.	Delivered non-conforming CSIs		
2.1.1.	Is there a procedure for notification to the Administrative and Procuring Contract Officers (ACO & PCO) of any delivered non-conforming as soon as practicable, but no later than 72 hours		☐
2.1.2.	Do procedures require that the contract, part, and serial numbers be identified if non-conforming parts are delivered		☐
2.2.	Purchasing Records		
2.2.1.	Do vendor purchase orders (POs) reference QE-STD-1 and/or other applicable Critical Item program documents		☐
2.2.2.	Are POs available for review by the appropriate Government Official		☐
2.3.	Government Furnished Material (GFM)		
2.3.1.	Do the contractor's procedures include the following	☐ Yes ☐ No	
2.3.1.1.	Examination upon receipt to detect transit damage		☐
2.3.1.2.	Inspection for completeness and proper type		☐
2.3.1.3.	Periodic inspection and precautions to assure adequate storage conditions are maintained, to guard against damage from handling and deterioration during storage, and to segregate it in a secure, controlled area		☐

2.3.1.4.	Functional testing, as required by contract, to determine satisfactory operation		☐
2.3.1.5.	Identification and protection from improper use or disposition		☐
2.3.1.6.	Verification of Quantity		☐
2.3.1.7.	Procedures to report damaged/non-conforming GFM and to segregate it in a secure, controlled area pending disposition instructions		☐
3.	Production Methods and Processes:		
3.1.	List of in-house processes (e.g. MPI, LPI, x-ray, brazing, welding, heat treat, shot peen, metallurgical lab, chemical lab, plating processes (identify), other coating capabilities (identify), etc.)		☐
3.2.	Material Review Board Actions		
3.2.1.	Do you have separate secured MRB storage areas (Gov/Civ)		☐
4.	Facility Test Equipment and Tooling		
4.1.	Tooling		
4.1.1.	Who manufactures your special tools and fixtures?		☐
4.1.2.	Is any tooling within the facility owned by the Government		☐
4.1.2.1.	If yes, how is the tooling stored and segregated?		☐
5.	Configuration Management		
5.1.	Do government and commercial products require segregation?		☐
5.2.	If yes, are government and commercial products segregated		☐
6.	Packing, Storage, and Delivery		
6.1.	Packing		
6.1.1.	Are military packaging tests performed when required by contract and documented		☐
6.1.2.	Are military packaging test results documented		☐
7.	Non-conforming Material and Corrective Action		
7.1.	Material		
7.1.1.	Is action taken to promptly document and correct all conditions of non-conforming materials to the government		☐

(Signature)_____
(Date)_____
(Typed or printed name & title)

This document must be signed by the Company President, Owner, or Plant Manager

APPENDIX B: SIGNIFICANT INDUSTRIAL PROCESS FORM

1. Complete and provide this table in Element E of the SAR.

1.1. If any of the listed SIP are required to manufacture the subject item, indicate the CAGE code of the performing company (PS or STS).

1.2. The processes shown in grey require NADCAP, OEM/Prime, DOD, or other approved certification and/or audit and must have a certificate included in the PS Company Profile.

1.2.1. See sections 7.8 and 7.11 for details on updating the Company Profile.

#	SIGNIFICANT INDUSTRIAL PROCESSES	NADCAP	Performing CAGE:
1	Casting /Forging Processes	NA	
2	Other Forming Processes	NA	
3	Blending/Reworking	NA	
4	Heat Treating:	7102	
4a	Carburizing	7102	
4b	Nitriding	7102	
4c	Hot Isostatic Pressing	7102	
4d	Sintering	7102	
5	Brazing	7102/7110	
6	Chemical Processes:	7108	
6a	Chemical Cleaning/Surface Treatment/- Passivation	7108	
6b	Anodizing	7108	
6c	Conversion/Phosphate Coatings	7108	
6d	Paint/Dry Film Coatings	7108	
6e	Stripping	7108	
6f	Chemical Milling	7108	
6g	Electroplating	7108	
6h	Electroless Plating	7108	
6i	Etching (Nital/Pre-Penetrant/Temper/- Macrostructure/Blue Etch Anodize)	7108	
7	Vapor Deposition	7108/7109	
8	Coatings:	7109	
8a	Thermal Spray	7109	
8b	Diffusion Coatings	7109	
9	Welding:	7110	

	9a	Flash	7110	
	9b	Resistance	7110	
	9c	Fusion	7110	
	9d	Laser	7110	
	9e	Rotational Friction	7110	
	9f	Diffusion	7110	
	9g	Percussion Stud	7110	
10		Nonconventional Machining:	7116	
	10a	Electrochemical Machining	7116	
	10b	Electrochemical Grinding	7116	
	10c	Electrical Discharge Machining	7116	
	10d	Laser Beam Machining	7116	
	10e	Laser Part Marking	7116	
	10f	Spark Erosion Grinding	7116	
	10g	Abrasive Water Jet Machining	7116	
11		Blasting Processes	NA	
12		Peening:	7117	
	12a	Computer Controlled	7117	
	12b	Automated	7117	
	12c	Forming	7117	
	12d	Flapper	7117	
	12e	Manual	7117	
13		Soldering	7120	
14		Conventional Machining as a Special Process	7126	
	14a	Broaching	7126	
	14b	Substantial Grinding (not to include spot-grinding)	7126	
15		Surface Finishing Processes:	NA	
	15a	Honing	NA	
	15b	Sutton Barrel	NA	
16		Non-Destructive Inspections:	7114	
	16a	Fluorescent Penetrant	7114	
	16b	Magnetic Particle	7114	
	16c	Eddy Current	7114	
	16d	Ultrasonic	7114	
	16e	Radiography	7114	
	16f	Laser Holography	NA	
17		Measurement and Inspection:	7130	
	17a	Coordinate Measuring Machines	7130	
	17b	Laser Trackers	7130	
	17c	Optical Systems	7130	
	17d	Mass Airflow	7130	

APPENDIX C: COVER LETTER REQUIREMENTS

The following information is required for the cover letter:

Solicitation Number (if applicable):

Contracting Officer POC (if applicable):

Engine Type:

Company Name:

Company CAGE:

Company Address:

Primary Company POC: Name, phone, fax and email

Secondary Company POC: Name, phone, fax and email

Company Size: (Large or Small)

Qualification Requirement Designation and Revision: (i.e. MQR-PSD-1, Rev 1)

Technical Data Proprietary: No, Yes or Partial (Select One)

NSN(s):

PN(s):

Nomenclature:

ERRC Code (if known):

Assembly/Module/Whole Engine SAR: (Yes or No)

SAR Waiver Included: (Yes or No)

APPENDIX D: SOURCE OF SUPPLY MATRIX FOR MODULES/ASSEMBLIES

1. SAR package submissions for parts that are made up of multiple embedded items, such as modules or assemblies, must include a matrix (see table below) that describes the PS's method of procurement for all of the embedded items. Approved methods include:
 - 1.1. Organic – The PS is an approved source of supply or has submitted a SAR package for the embedded item. Provide the SAR approval letter or SAR control number.
 - 1.2. OEM – The PS will purchase the embedded item from the OEM. Provide the company name and CAGE code along with an offer letter, on company letterhead, stating that the parts are available for procurement to the PS.
 - 1.3. USAF Approved Source – The PS will purchase the embedded item from a SAR approved source (must be listed on the AFMC Form 761). Provide the company name and CAGE code along with an offer letter, on company letterhead, stating that the parts are available for procurement to the PS.
 - 1.4. Common Part – The embedded item is common and does not have any critical design elements requiring procurement from an approved source and is readily available.
2. The Assembly SAR does not qualify the PS to manufacture any of the embedded items. If the PS wishes to become an approved source of supply for any of the embedded items, a unique SAR package must be submitted for each embedded item.
3. Include the matrix in Element A of any SAR submitted for a Module/Assembly.

Assembly PN:	XXXXXXXX		
<u>Part Number</u>	<u>Noun/Nomenclature</u>	<u>Source of Supply</u>	<u>Details</u>
XXXXXXX	Embedded Item #1	Organic	SAR submitted for review on (DD MM YY). SAR control number: XXXXXXXX
XXXXXXX	Embedded Item #2	Organic	The PS is already an approved source. See attached ESA approval letter
XXXXXXX	Embedded Item #3	OEM	See attached letter of support from OEM (CAGE: XXXXX)
XXXXXXX	Embedded Item #4	USAF Approved Source	See attached letter of support from Approved Source (CAGE: XXXXX)
XXXXXXX	Embedded Item #5	Common Part	Part is standard/common

*Example Source of Supply Matrix for Modules/Assemblies

**APPENDIX E:
TECHNICAL DATA RIGHTS CERTIFICATION LETTER**

I am an officer and employee of the above name legal entity with the responsibility for investigating the facts upon which this certification is made. To the best of my knowledge and information obtained from my recent investigation:

I certify that the technical data submitted as a part of my company's request for approval as potential source for the purpose of obtaining a contract were obtained by legal means by my company, without breach of any contractual or confidential relations pertaining to said technical data by my company, its current or recent employees; and

I certify that my company, its current or recent employees did not obtain or receive any technical data marked with a company's proprietary rights legend or a Government limited rights legend from any U.S. Government's agency or employee or other third parties that were used in the preparation of or were incorporated into the request for approval or its supporting technical data other than as described herein; and

I certify that my company has the legal right to use said technical data to manufacture/repair the below identified part for the United States Government. To the extent that said technical data are marked with a company's proprietary rights or a Government limited rights legend or are otherwise believed to be or have in the past been the proprietary data of another company, the following documents which are attached hereto and made a part of the certification have formed the basis for claiming legal right to use said technical data. Such documentation must clearly cover the data necessary for source approval.

THIS CERTIFICATION CONCERNS A MATTER WITHIN THE JURISDICTION OF AN AGENCY OF THE UNITED STATES AND THE MAKING OF A FALSE, FICTITIOUS, OR FRAUDULENT CERTIFICATION MAY RENDER THE MAKER SUBJECT TO PROSECUTION UNDER THE TITLE 18, UNITED STATES CODE, SECTION 1001.

THIS CERTIFICATION APPLIES TO:

NSN _____ P/N _____ Noun _____

Note: If SAR package is for multiple NSNs, all NSNs, Part Numbers, Nouns must be listed. The list can be attached to the letter.

(Signature)

(Date)

(Typed or printed name & title)

This document must be signed by the Company President, Owner or Plant Manager

APPENDIX F:
SIMILAR ITEM COMPARISON MATRIX

*This table to be used as an example for the required matrix.

<i>Subject Item Nomenclature</i>	<i>Similar Item Nomenclature</i>
<i>Subject Item NSN</i>	<i>Similar Item NSN</i>
<i>Subject Item Part Number</i>	<i>Similar Item Part Number</i>
<i>Subject Item TMS (if known)</i>	<i>Similar Item TMS (if known)</i>
<i>Subject Item Material</i>	<i>Similar Item Material</i>
<i>Subject Item Function</i>	<i>Similar Item Function</i>
<i>Subject Item Coatings</i>	<i>Similar Item Coatings</i>
<i>Subject Item Manufacturing/ROMM Processes</i>	<i>Similar Item Manufacturing/ROMM Processes</i>
<i>Subject Item Inspection Processes</i>	<i>Similar Item Inspection Processes</i>
<i>Subject Item Surface Finish</i>	<i>Similar Item Surface Finish</i>
<i>Subject Item Tightest Tolerance</i>	<i>Similar Item Tightest Tolerance</i>

APPENDIX G:
PROCESS CHANGE REQUEST (PCR) /
SOURCE RESUBSTANTIATION REQUEST (SRR)

MEMORANDUM FOR AFSC/SB
3001 Staff Drive Ste. 1AG85A
Tinker AFB, OK 73145-3009

DATE MM/DD/YYYY

FROM: COMPANY NAME
CAGE Code
ADDRESS
PHONE NUMBER

SUBJECT: Process Change Request/Source Resubstantiation Request for NSN 1234-00-567-8910, PN 12345678, NOMENCLATURE

SOURCE RESUBSTANTIATION REQUEST (SRR)



PROCESS CHANGE REQUEST (PCR)



1. COMPANY (CAGE: NUMBER) was approved to manufacture PN: 12345678 on MM/DD/YYYY. This (PCR or SRR) is a notification of the changes to the subject item package that have occurred since that date.
2. The SAR contents have been changed as follows:

Required Element	Remain Unchanged	Update Provided
A: Cover Letter	☐	☐
B: Subject Item Technical Data	☐	☐
C: Proposed Production Documents	☐	☐
D: Sub-Tier Supplier (STS) List	☐	☐
E: Significant Industrial Processes (SIP)	☐	☐
F: Calibrated Equipment List	☐	☐
G: Technical Data Rights Cert. Statement	☐	☐
H: License Agreements	☐	☐
I: Gov't Quality Assurance Compliance	☐	☐

3. The items that have been updated are provided with changes noted.
4. Please review the (PCR or SRR) and consider renewing the approval status of our company for the subject item.

Respectfully,
(Signature)

ATTACHMENTS:

(Typed or printed name & title)

APPENDIX H: DEFINITIONS

AFMC Form 761 – The “Screening Analysis Worksheet” that lists all USAF approved sources of supply for a specific NSN. The document also lists the AMSC code for the NSN.

Company Profile – A collection of all quality assurance documentation, SIP certification, and STS network that fully describes the capability of the PS at the time of submittal. The Company Profile is reviewed during SAR review to ensure agreement with any STS and SIP certification called out in the SAR. All relevant certificates must not be expired in order to receive SAR approval.

Critical Application Item (CAI) – An item, part, assembly, installation, or production system that is essential to weapon system performance or operation, or the preservation of life or safety of operating personnel, as determined by the military services.

Critical Characteristic – Any feature throughout the life cycle of a Critical Item, such as dimension, tolerance, finish, material, or assembly, manufacture, manufacture or inspection process, operation, field maintenance, or depot overhaul requirement that if non-conforming, missing, or degraded may cause the failure or malfunction of the item.

Critical Safety Items (CSI) – An item, part, assembly, installation or production system with one or more critical characteristic that, if missing or not conforming to the design data or quality requirements, would result in an unsafe condition that could cause loss or serious damage to the end item or major items, loss of control, uncommanded engine shutdown, or serious injury or death to personnel. Unsafe conditions relate to hazard severity categories I and II of MIL-STD-882, System Safety Requirements. The determining factor in CSI is the consequence of failure, not the probability that the failure or consequence would occur.

Engineering Support Activity (ESA) – The Military Service organization assigned responsibility and authority to perform and approve engineering and quality assurance actions necessary to evolve detail design disclosures for systems, subsystems, equipment and components exhibiting attributes essential for products to meet specific military requirements. During the operational phase, it includes any engineering activity, the results of which would add to or alter the design of equipment in such a manner, or to such an extent, as to change its operational capabilities or its design attributes of performance, reliability, maintainability and parts interchangeability, or to render it capable of alternative or additional use. For the purpose of this QR, the ESA is synonymous with the Designated Air Force Single Manager for the Weapon System, Design Control Activity, the Cognizant Engineering Authority (CEA) and the USAF Propulsion Division Engineering Chief.

Inspection Method Sheets (IMS) – document used to describe the steps involved in executing an inspection or series of inspections to include tooling, gages, fixtures, dimensions and other parameters necessary to execute the required inspections(s). Sheets must be certified by an authorized representative empowered to comply with the inspection process.

Material – A general term referring to material at any stage in the manufacture/repair process.

National Aerospace & Defense Contractors Accreditation Program (NADCAP) – The accreditation program through which the Performance Review Institute (an independent, non-profit trade association affiliated with the Society of Automotive Engineers), accredits subcontractors and sub-tier suppliers to aerospace and defense industry consensus standards.

Original Equipment Manufacturer (OEM) –An individual, activity, or organization that performs the physical fabrication processes that produce the deliverable part or other items of supply for the prime contractor and performed the original development of the subject item or assembly. The OEM must produce the part in-house. The OEM may or may not be granted design responsibility by the prime contractor for preparation and technical currency of technical data.

Potential Source – Any potential offeror who wants to be considered as a source for a given part, but who has not yet been approved/disapproved. A source of this type would normally be required to meet prequalification requirements prior to contract award and may also be subjected to production inspection or surveillance if a contract is received.

Prime Contractor – A contractor having responsibility for design and/or delivery of a system, subsystem, or equipment such as aircraft, engines, ships, tanks, vehicles, guns and missiles, ground communications and electronics systems and test equipment.

Process Operation Sheets (POS) – documents used to describe the steps involved in executing an operation or series of operations to include tooling, machinery, dimensions, speeds, feed rates, coolants, cutters, tape numbers and other operating, process and/or set-up parameters necessary to execute the operation. Includes detailed shop sketches. At a minimum, significant processes in Appendix B shall be fully defined.

Repair – Necessary preparation, fault correction, disassembly, inspection, replacement of parts, adjustment, reassembly, calibration, or tests accomplished in restoring items to serviceable status.

Significant Industrial Process – A process which is capable of producing alterations in the material structure of a part which cannot normally be evaluated without destructive testing and which can compromise the mechanical properties and ultimately the reliability of the part. Examples of processes that are considered to be significant by AFLCMC/LPS are listed in Appendix B.

Similar part – A part fabricated from the same or a similar material that is equivalent or more difficult than the subject item to form and finish. The similar part must demonstrate the ability of the prospective source, in conjunction with their STS, to perform all requisite significant manufacturing/repair processes applicable per the technical data and sub-tier specifications. Significant processes are defined in Appendix B.

Subject Item – The actual item or assembly that the PS is attempting to be qualified for by submitting a SAR.

Sub-Tier Supplier (Sub-Vendor) (STS) – A source supplying material, products and/or services to the PS as required in the performance of the contract. This term applies to all facilities other than the PS's facility including those of the same company with a separate cage code.

Technical Data – Data required for the accomplishment of logistics and engineering processes in support of the contract end item. Includes drawings, operating and maintenance instructions, provisioning information, specifications, inspection and test procedures, instruction cards and equipment placards, engineering and support analysis data, special purpose computer programs and other forms of audio visual presentation required to guide personnel in the performance of operating and support tasks.